

Motion

A

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.:

22595/2014E

RUBAN AYALA, JR.

Date Purchased:

Plaintiff,

Date Filed:

— against —

SUMMONS

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT ANDERSON,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE**

Plaintiff designates Bronx County as the
place of trial. The basis of venue is the
action arose in Bronx County.

Defendant(s).

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York
June 5, 2014



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 23rd Floor
New York, NY 10038
(212) 412-4705
File No.: NW- 588

TO: ZACHERY CARTER, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

DETECTIVE OFFICER ABDIEL ANDERSON (Shield No. 1429)
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

RUBAN AYALA, JR.

INDEX NO.: 22595/2014E

Plaintiff,

- against -

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE**

VERIFIED COMPLAINT

Defendant(s).

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **RUBAN AYALA, JR.** was and is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as "NYPD", was and is an agency of the defendant, **CITY**.
4. That on and prior to 1/20/14 and at all times hereinafter mentioned the defendant, **DETECTIVE ABDIEL ANDERSON** (Shield No. 1429), hereinafter referred to as "ANDERSON" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the **CITY** and **NYPD**.
5. That on and prior to 1/20/14 and at all times hereinafter mentioned the defendant, **POLICE OFFICER JOHN DOE**, hereinafter referred to as "DOE" was and is a police officer

employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 1/20/14 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 1/20/14, at approximately 11:00 a.m., several police officers including but not limited to ANDERSON, DOE and ROE were on duty and in the vicinity of 972 Leggett Avenue, County of Bronx, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 1/20/14, at approximately 11:00 a.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants ANDERSON, DOE and ROE were all assigned to the Bronx Narcotics.

10. That on and prior to 1/20/14 ANDERSON, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 1/20/14, at approximately 11:00 a.m., and all relevant times herein after, ANDERSON, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 1/20/14, at approximately, 11:00 a.m., Plaintiff **RUBAN AYALA, JR.** was

lawfully in the vicinity of 972 Leggett Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

13. That on 1/20/14, at approximately, 11:00 a.m., in the vicinity of 972 Leggett Avenue, County of Bronx, State of New York, ANDERSON, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **RUBAN AYALA, JR.** for no reason and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

14. Upon information and belief ANDERSON, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **RUBAN AYALA, JR.**

15. Upon information and belief, Plaintiff **RUBAN AYALA, JR.** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

16. That Plaintiff **RUBAN AYALA, JR.** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime.

17. Thereafter, Plaintiff **RUBAN AYALA, JR.** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

18. Plaintiff **RUBAN AYALA, JR.** sustained physical and emotional pain and injuries as a result of this incident.

19. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **RUBAN AYALA, JR.** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and

number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

20. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

21. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RUBAN AYALA, JR.

22. Plaintiff **RUBAN AYALA, JR.** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 21 with the same force and effect as if fully set forth at length herein.

23. That on or about 1/20/14, at approximately 11:00 a.m., the Plaintiff **RUBAN AYALA, JR.** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and/or employees, and in particular, by ANDERSON, DOE and ROE.

24. That on or about 1/20/14, at approximately 11:00 a.m., the Plaintiff **RUBAN**

AYALA, JR. while lawfully in the vicinity of 972 Leggett Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, ANDERSON, DOE and ROE of having committed a crime.

25. That on or about 1/20/14, and upon arresting the Plaintiff **RUBAN AYALA, JR.** and depriving him of his liberty, CITY, NYPD, ANDERSON, DOE and ROE took the Plaintiff **RUBAN AYALA, JR.** to a police station in the County of Bronx and entered him on the records as under arrest.

26. That on or about 1/20/14, the CITY, NYPD, ANDERSON, DOE and ROE further caused Plaintiff **RUBAN AYALA, JR.** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

27. That on or about 1/20/14 Plaintiff **RUBAN AYALA, JR.** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

28. That at all times hereinafter mentioned the actions of CITY, NYPD, ANDERSON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

29. That by reason of the foregoing, Plaintiff **RUBAN AYALA, JR.** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RUBAN AYALA, JR.

30. Plaintiff **RUBAN AYALA, JR.** repeats, reiterates and realleges each and every

allegation contained in paragraphs numbered 1 – 29 with the same force and effect as if fully set forth at length herein.

31. That on or about 1/20/14, a criminal complaint was issued by the CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That on or about 1/20/14 a criminal action against Plaintiff RUBAN AYALA, JR. was commenced by CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That solely as a result of the aforesaid, the Plaintiff RUBAN AYALA, JR.'S life was interfered with.

34. That the criminal action against Plaintiff RUBAN AYALA, JR. was continued for an extended period of time by defendants with malice and bad faith.

35. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff RUBAN AYALA, JR., he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That the criminal action against Plaintiff RUBAN AYALA, JR. was terminated favorably by dismissal.

37. That the actions of CITY, NYPD, ANDERSON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

38. That by reason of the foregoing, Plaintiff RUBAN AYALA, JR. has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RUBAN AYALA, JR.

39. Plaintiff **RUBAN AYALA, JR.** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 -- 38 with the same force and effect as if fully set forth at length herein.

40. That on or about 1/20/14, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **RUBAN AYALA, JR.** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, ANDERSON, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That on or about 1/20/14 CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, ANDERSON, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **RUBAN AYALA, JR.** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **RUBAN AYALA, JR.** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **RUBAN AYALA, JR.** and caused such battery in and about his head, neck, back, body and limbs.

42. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **RUBAN**

AYALA, JR. suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

43. That as a result of the aforesaid assault and battery the Plaintiff **RUBAN AYALA, JR.** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

44. That at all times hereinafter mentioned the actions of CITY, NYPD, ANDERSON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff **RUBAN AYALA, JR.** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RUBAN AYALA, JR.**

46. Plaintiff **RUBAN AYALA, JR.** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 45 with the same force and effect as if fully set forth at length herein.

47. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to ANDERSON, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the

manner that each was employed by CITY and NYPD.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff **RUBAN AYALA, JR.** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

52. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

53. That by reason of the foregoing, Plaintiff **RUBAN AYALA, JR.** has been damaged in

an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RUBAN AYALA, JR.

54. Plaintiff **RUBAN AYALA, JR.** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **RUBAN AYALA, JR.**, police officers including but not limited to **ANDERSON, DOE** and **ROE**, acting in their capacity as agents, servants and employees of **CITY** and **NYPD**, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **RUBAN AYALA, JR.**, police officers including but not limited to **ANDERSON, DOE** and **ROE**, acting in their capacity as agents, servants and employees of **CITY** and **NYPD**, sought either a detriment to Plaintiff **RUBAN AYALA, JR.** or a collateral advantage to the **CITY** and **NYPD** that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **RUBAN AYALA, JR.** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

58. That at all times hereinafter mentioned the actions of **CITY, NYPD** and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff **RUBAN AYALA, JR.** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RUBAN AYALA, JR.

60. Plaintiff **RUBAN AYALA, JR.** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 59 with the same force and effect as if fully set forth at length herein.

61. That on 1/20/14, at approximately 11:00 a.m., within the vicinity of 972 Leggett Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to ANDERSON, DOE and ROE who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

62. That Plaintiff **RUBAN AYALA, JR.** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

63. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

64. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not

disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

65. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

66. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

67. It is alleged herein that Plaintiff **RUBAN AYALA, JR.** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **RUBAN AYALA, JR.**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect

approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals – relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

68. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

- a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while

doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the "substance" recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to "get on the wall" and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or

improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person

was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They were charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was

leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted

down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or anytime prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

69. As is evidence from the above, Plaintiff **RUBAN AYALA, JR.**'S injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, strip searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

70. The CITY and NYPD knew or should have known of the customs and police practices

of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

71. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

72. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

73. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhily Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign

those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

74. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

75. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **RUBAN AYALA, JR.**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C

§§ 1983, 1986 and 1988.

76. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

77. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

78. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

79. That by reason of the foregoing, Plaintiff **RUBAN AYALA, JR.** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RUBAN AYALA, JR.

80. Plaintiff **RUBAN AYALA, JR.** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 79 with the same force and effect as if fully set forth at length herein.

81. At all times mentioned herein and above, defendants CITY and NYPD employed ANDERSON, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

82. Plaintiff **RUBAN AYALA, JR.** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

83. That on or about 1/20/14, defendants CITY, NYPD, ANDERSON, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **RUBAN AYALA, JR.**, did search, seize, assault and commit a battery and grab the Plaintiff **RUBAN AYALA, JR.** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **RUBAN AYALA, JR.** during the arrest process in an unlawful and excessive manner. Plaintiff **RUBAN AYALA, JR.** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

84. The above actions of defendants CITY, NYPD, ANDERSON, DOE and ROE and ROE resulted in Plaintiff **RUBAN AYALA, JR.** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

85. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise,

discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

86. Defendants CITY, NYPD, ANDERSON, DOE and ROE subjected Plaintiff **RUBAN AYALA, JR.** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **RUBAN AYALA, JR.**'S rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

87. The direct and proximate result of the defendants CITY, NYPD, ANDERSON, DOE and ROE acts are that Plaintiff **RUBAN AYALA, JR.** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

88. That by reason of the foregoing, Plaintiff **RUBAN AYALA, JR.** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **RUBAN AYALA, JR.** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York
June 5, 2014

Yours, etc.,

A handwritten signature in dark ink, appearing to read 'Neil Wollerstein', with a long, sweeping flourish extending to the right.

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff

59 Maiden Lane, 23rd Floor

New York, NY 10038

(212) 412-4705

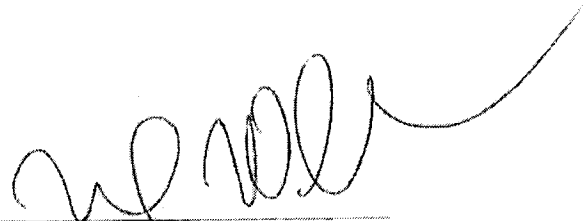
File No.: NW-588

ATTORNEY VERIFICATION

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of plaintiff **RUBAN AYALA, JR.**
2. That affirmant has read the foregoing **SUMMONS and VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiff is that the plaintiff is not within the County of New York where affirmant maintains his office.

Dated: New York, New York
June 5, 2014


NEIL WOLLERSTEIN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RUBAN AYALA, JR.

Plaintiff,

— against —

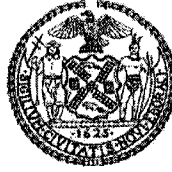
**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE
ABDIEL ANDERSON, POLICE OFFICER JOHN DOE and POLICE OFFICER JOHN ROE**

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 23rd Floor
New York, NY 10038
Tel: (212) 412-4705
Fax: (917) 522-9703
File No.: NW-588



ZACHARY W. CARTER
Corporation Counsel

**The City of New York
LAW DEPARTMENT**
100 CHURCH STREET
NEW YORK, NEW YORK 10007

June 24, 2014

RUBAN AYALA, JR.
by mailing a copy to his/her/their attorney(s),
NEIL WOLLERSTEIN, ESQ.
at 59 MAIDEN LANE, 23RD FLOOR
NEW YORK, NY 10038

Re: RUBAN AYALA, JR. v. CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT ANDERSON, POLICE OFFICER
JOHN DOE AND POLICE OFFICER JOHN ROE
Law Dept. 2014-021789 Bronx County Index # 022595/2014E

Dear Sirs:

This office does not consent to the Filing By Electronic Means (NYSCEF) for this
action.

Sincerely yours,

A handwritten signature in black ink, appearing to read "S. Bombard", written over a horizontal line.

Assistant Corporation Counsel
STEVEN BOMBARD



ZACHARY W. CARTER
Corporation Counsel

**The City of New York
LAW DEPARTMENT**
100 CHURCH STREET
NEW YORK, NEW YORK 10007

Dear Counsel:

If you would like to have this case considered for possible early settlement by the Early Intervention Unit of the Tort Division, the following items (as applicable) should be forwarded to the attention of Ms. Diane Studdard, New York City Law Department, Tort Division, 100 Church Street, New York, New York 10007:

IN ALL CASES COPIES OF THE FOLLOWING ITEMS MUST BE PROVIDED:

1. Notice of Claim.
2. 50-h transcript.
3. Verified Complaint and Answer.
4. Aided Card, if prepared.
5. UF18 - City Involved Accident Report, if prepared.
6. All medical and hospital records, including ambulance call report, first treatment, emergency room record, operative and radiology reports, treating physician(s) reports, physical therapy records, etc.
7. Photographs (duplicates, color or laser copies preferred) of the location and of injuries, if scarring is claimed.
8. Proof of any special damages claimed.
9. Any other item(s) that you believe pertinent to an early resolution of your case.
10. Social Security number and any other Medicare information – see attached notice

ALLEGED TRIP AND FALL ON A SIDEWALK OR ROADWAY

1. Most recently dated Big Apple map.
2. Permits, cut forms, contracts, if available.
3. Any other documents that the plaintiff will rely upon to prove prior written notice, if not a Big Apple Map.

MOTOR VEHICLE ACCIDENT CASES

1. Police Accident Report.
2. MV-104 filed by or on behalf of the plaintiff.
3. Agency incident/accident report, if prepared.
4. DMV hearing transcript, if available.
5. Photographs of the vehicle, before and after the accident.
6. Available insurance coverage for the vehicle involved in the accident.
7. Plaintiff's No-fault records.
8. Repair bills and/or estimates.

9. If the accident involves a traffic light or stop sign, any documentation that the plaintiff will rely upon to prove notice.

ALLEGED PREMISES LIABILITY

1. Copies of any documents that plaintiff will rely on to establish ownership of the premises.
2. Prior complaints.
3. Accident/incident reports.

BOARD/DEPARTMENT OF EDUCATION CASES

1. Accident and/or incident report and attachments, if any.
2. Custodian reports.
3. Teacher(s) statements/reports.
4. Witness statements.
5. Copies of any documents filed with or against any governmental agency concerning the incident.

ALLEGED POLICE MISCONDUCT

1. Any police reports in your possession.
2. Arrest report and photographs.
3. Certified copy of the disposition of any criminal proceedings.
4. Witness statements.
5. Complaint report and any follow-up reports.
6. If entitlement to reimbursement of legal fees is claimed, copies of any bills incurred.

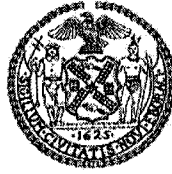
ALLEGED PROPERTY DAMAGE

1. Photographs (duplicates, color or laser copies preferred) depicting the items alleged to have been damaged, prior and subsequent to the damage.
2. Original purchase receipts, cancelled checks, and/or charge slips for the items alleged to have been damaged.
3. Appraisals, warranties, etc.
4. Copies of any insurance agreements pertaining to property damages and/or loss.

Please be advised that all of the above materials must be sent in order to have your case considered for possible early settlement - incomplete packages cannot be considered. Within two to three months after receipt of the above materials, you will be contacted to discuss the case further. ***Counsel appearing at the conference must have settlement authority and be prepared to establish liability and damages.*** If you have any questions regarding this procedure, you may contact Ms. Diane Studdard at (212) 356-3283.

Very truly yours,

Diane Studdard



The City of New York
LAW DEPARTMENT
Office of the Corporation Counsel
Tort Division
Medicare Compliance and Recovery
Unit
100 Church Street, 4th Floor
New York, NY 10007-2668

Medicare@law.nyc.gov

ZACHARY W. CARTER
Corporation Counsel

June 24, 2014

NEIL WOLLERSTEIN, ESQ.
59 MAIDEN LANE, 23RD FLOOR
NEW YORK, NY 10038

Case Name: RUBAN AYALA, JR. v. CITY
OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT
ANDERSON, POLICE OFFICER JOHN DOE
AND POLICE OFFICER JOHN ROE
Index: 022595/2014E
Law Department No: 2014-021789

Dear Counselor:

It is important that you provide us with certain personal identifying information about each plaintiff, that we need in order to identify whether each of your clients is a Medicare beneficiary, via an electronic query to the Center for Medicare and Medicaid Services (CMS). Specifically, we need each plaintiff's date of birth and Social Security number or Health Insurance Claim Number (HICN), also known as the Medicare number.

Although this disclosure is voluntary, federal law mandates that self-insured liability entities, such as the City of New York, report settlements with Medicare recipients to CMS and ensure that Medicare's financial interests in obtaining reimbursement from plaintiffs are fully protected. There is a \$1,000-per-day penalty assessed against any insurer who fails to report a settlement to Medicare and the insurer is obligated to ascertain whether a plaintiff is, in fact, a Medicare recipient. To conclusively determine whether your client is a Medicare beneficiary, your client's name, gender, date of birth, and social security number must be submitted to CMS's automatic query system. *See* Section 111 of the Medicare & Medicaid SCHIP Extension Act of 2007, 42 U.S.C. §1395y. Thus, courts have held that plaintiff's production of his or her Social Security Number is required. *Smith v. Sound Breeze of Groton Condo. Assoc.*, 2011 Conn. Super. LEXIS 194 (Conn. Super. Ct. February 3, 2011); *Hackley v. Garofano*, 2010 Conn. Super LEXIS 1669 (Conn. Super. Ct. July 1, 2010). *See also*, *Seger v. Tank Connection, LLC*, 2010 U.S. Dist

LEXIS 49013 (D. Neb. June 1, 2010) ("Collection of the SSNs for the purposes of coordinating benefits with Medicare is a required, legitimate and necessary use of the SSN under federal law and is thus permitted by HIPAA").

If you know for a fact that your client presently receives Medicare, your firm must immediately (1) notify Medicare of the pending lawsuit; (2) provide the Law Department with plaintiff's Medicare identification number and/or social security number; (3) obtain conditional and final payment information from Medicare; (4) if future medical care is anticipated, determine the amount to be set aside by plaintiff for payment of future medical costs; and (5) provide copies of any correspondence you have received from Medicare.

Please note that, as plaintiff's counsel, you also have obligations and liabilities under federal law in the event your client is or may become a Medicare recipient. Medicare may be entitled to reimbursement out of any settlement proceeds for any payments it has made for treatment of these injuries, and may have a claim directly against you for unreimbursed sums.

Where the Government is obliged to pay for the medical care of a person who is injured "under circumstances creating tort liability upon some third person . . . to pay damages therefore," the Government has the right to recover the reasonable value of the care it provides. See The Medical Care Recovery Act ("MCRA"), 42 U.S.C. § 2651. 3. Medicare may make "conditional payment" for medical care and then recover the payments made or "reasonably expected to be made" from any of the following: Group health plans, workers compensation programs, liability insurers, self-insurers, plaintiffs, plaintiffs' attorneys, and medical providers. See Medicare Secondary Payer Act 42 U.S.C. §1395y(b). Pursuant to the Medicare Secondary Payer Act, plaintiff's counsel and the City of New York have a duty to comply with reporting and/or recovery provisions, and Federal law imposes potential liability against plaintiff's counsel and the City of New York for non-compliance. See 42 CFR 411.37; 42 CFR 411.24(c); 411.26(a)-(b). A failure to take Medicare's interests into consideration can result in double damages or a loss of plaintiff's Medicare benefits. An insurer's failure to report any settlement results in a \$1,000-a-day fine to the insurer.

The right of a defendant to withhold payment pending plaintiff's resolution of any potential Medicare claims or liens is firmly established. Years ago, the Appellate Division, Second Department held, in Liss v. Brigham Park Coop. Apts., 264 A.D.2d 717 (2d Dep't 1999), that a plaintiff's general release and stipulation of settlement are defective if tendered without a release of plaintiff's Medicare lien. Specifically, the Court noted that, because the Federal government has a right of action directly against the defendant for recovery of its lien, it was "incumbent upon plaintiff to resolve the lien and give the defendant a release." 264 A.D.2d at 718.

Recently, in Torres v. Hirsch Park, LLC, 91 AD.3d 942 (2nd Dep't 2012), the Court reaffirmed this principle. The Second Department stated: "The general release and stipulation of settlement tendered by plaintiff were defective because they failed to include any provisions releasing and holding the defendant harmless from potential Medicare and Medicaid liens or acknowledging that any such liens would be satisfied from the settlement proceeds." (Citations omitted). The Court also recognized the burden that the defendant faced regarding compliance with federal law, observing that the plaintiff must provide information "necessary for the defendant to comply with its statutory duty to report the identity of a claimant who is entitled to Medicare benefits (see 42 USC 1395y[b][8]) and to determine the existence of potential subrogation claims [under federal law]." *Id.* at 943 (citations omitted).

Echoing the Second Department's rationale, in Panella v. CBS Broadcasting, Inc., 2011 N.Y. Misc. LEXIS 4271. (Sup. Ct. N.Y. Cty. September 1, 2011), the Supreme Court held that, for

purposes of payment, CPLR 5003-a "does not become operative until a duly executed release is tendered by the settling plaintiff to the settling defendant, and an unpaid lien renders a general release not 'duly executed.'" Id. at *6. The Panella court cited Liss as governing precedent for this holding. The Court further concluded that the settling defendant "should not be penalized for failing to disburse settlement funds within twenty-one days of the...release, when it had spent months trying to get information from the plaintiffs as to any Medicare liens they may have against them. [The settling defendant] was taking the steps necessary to protect itself from liability for any potential failure by the plaintiffs to pay outstanding Medicare liens..." Id. at *7. Indeed, the Court did not consider the action "settled within the purview of CPLR 5003-a(a) until the Medicare issues were resolved by the CMS letter." Id.

Other jurisdictions have similarly held that a settling defendant has a legitimate right to protect itself from liability to Medicare and is thus acting in good faith by requiring a settling plaintiff, who is a Medicare recipient, to provide proof as to the existence or non-existence of a Medicare claim or lien. See, e.g., Wilson v. State Farm Mutual Automobile Ins. Co., 795 F.Supp.2d 604, at 607-608 (W.D. Ky. 2011) (defendant insurer "had sound reasons to try to determine the amount of [the lien] and protect itself from overpayment" and that, given the statutory obligations to Medicare, "that to comply with federal law and protect its own legitimate interests against overpayment [of the plaintiff] is reasonable and certainly is not in bad faith").

Please note it is possible that, in certain cases, a Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y (b) and 42 C.F.R. §§411.22 through 411.26.

Accordingly, if your client is a Medicare recipient, your firm should immediately notify Medicare of this pending lawsuit and seek information on conditional payments (including anticipated future payments) for which Medicare will expect reimbursement. Information and Contact instructions for Coordination of Benefits (COBC) can be found at www.cms.gov/ or by phone: 800-999-1118. In addition, plaintiff can access his/her Medicare benefits at www.mymedicare.gov. Additional information can be found on the Medicare Secondary Payer Recovery Contractor's (MSPRC) website at www.msprc.info/.

Please further note that, as of September 30, 2011, the MSPRC has added a Self-Service Information feature to its customer service line (1-866-677-7220) that gives callers the ability to get the most up-to-date Demand and Conditional Payment amounts as well as the dates those letters were issued without having to speak with a Customer Service Representative.

PLEASE BE ADVISED THAT WE CANNOT FINALIZE ANY SETTLEMENT WITH A CURRENT MEDICARE RECIPIENT WITHOUT FIRST RESOLVING MEDICARE'S CLAIM.



ZACHARY W. CARTER
Corporation Counsel

**The City of New York
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NEW YORK 10007**

June 24, 2014

NEIL WOLLERSTEIN, ESQ.
59 MAIDEN LANE, 23RD FLOOR
NEW YORK, NY 10038

Re: RUBAN AYALA, JR. V. CITY OF NEW YORK
County: Bronx Ct. Index No.: 022595/2014E
Our File No.: 2014-021789

Dear Counselors:

This office is unable to evaluate and review your client's claims against THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT, ("CITY") without duly executed authorizations permitting the CITY to review records pertaining to your client's arrest, incarceration, and or criminal proceedings. A review of the file in the above named action reveals that you have yet to provide said authorizations. In order to facilitate the discovery process, please provide this office with the following:

- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy the records, transcripts and certificates of disposition of any criminal proceedings concerning the claims alleged in the complaint;
- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy all records, created by, or in the possession of, the New York City Police Department, relating to the claims alleged in the complaint; and
- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy all records, created by, or in the possession of, the District Attorney's Office, relating to the claims alleged in the complaint.

Enclosed is a blank authorizations for your convenience. Please copy and have your client complete a separate original authorization for the New York City Police Department, District Attorney's Office, and the unsealing of related criminal court records and return them to the New York City Law Department, 100 Church Street, New York, NY 10007 at your earliest convenience. NOTE: - For cases with more than one plaintiff please copy the blank authorization supplied herewith and return a separate set of completed authorizations *for each plaintiff* alleging other than only loss of consortium claims. Thank you for your anticipated cooperation.

Very truly yours,

ZACHARY W. CARTER
Corporation Counsel

**CONSENT AND AUTHORIZATION FOR RELEASE OF RECORDS SEALED BY
LAW, INCLUDING RECORDS SEALED PURSUANT TO CRIMINAL PROCEDURE
LAW § 160.50**

Whereas, I, _____, residing at _____, date of birth: _____, and Social Security # _____, NYSID # _____, having caused a notice of claim to be filed or commencing an action/lawsuit against THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT, , demanding money damages for false arrest, false imprisonment, malicious prosecution, assault and battery, and/or other allegations, I hereby waive my statutory rights, for purposes of this claim/action/lawsuit, to keep sealed the records of my arrest on or about January 20, 2014 and prosecution, including all records maintained by law enforcement agencies, criminal courts, and/or district attorney's office. If my case proceeded in the criminal courts, the docket # was _____.

Whereas, it is necessary for the above named defendant(s) to have access to the aforementioned records of my arrest and any related criminal proceedings and incarceration in order to evaluate and review my claims, and prepare its defense thereto, I hereby authorize any and all governmental agencies, bodies and employees having custody of such records to release such records to the Office of the Comptroller or the Office of the Corporation Counsel of the City of New York, or its authorized agent or employee. I specifically authorize the New York City Police Department; Bronx County District Attorney's Office; New York State Supreme Court, Bronx County, Criminal Term; and New York City Criminal Court to disclose any and all records in their possession relating to the aforementioned arrest/prosecution and docket number to the Office of the Corporation Counsel of the City of New York, or its authorized agent or employee.

Plaintiff/Claimant

Sworn to before me this _____ day of _____, 20____

NOTARY PUBLIC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RUBAN AYALA, JR.,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).
-----X

ANSWER

Index #: 022595/2014E

Law Dept. #: 2014-021789

Your File #: NW-588

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT, by ZACHARY W. CARTER, Corporation
Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 12-16, 18, 23-29, 31-35, 37, 38, 40-45, 47-53, 55-59, 62-79, 82-88, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 4-11, 17, 36, 61, 81, inclusive.
3. Deny the allegations set forth in paragraph(s) 19-21, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that the City of New York is a municipal corporation which maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 22, 30, 39, 46, 54, 60, 80, inclusive, except as otherwise pleaded herein.

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

ZACHARY W. CARTER
Corporation Counsel
100 Church Street
New York, New York 10007

Index #: 022595/2014E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RUBAN AYALA, JR.,

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ROBERT ANDERSON, POLICE OFFICER JOHN DOE AND
POLICE OFFICER JOHN ROE,

Defendant(s).

**COMBINED DEMAND FOR
BILL OF PARTICULARS & DISCOVERY**

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF NEW
YORK S/H/A NEW YORK CITY POLICE DEPARTMENT, 100 Church
Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)
(212) 356-2680/2683

All Other Matters (by county of venue)
(718) 590-3487 (EBT's-3971) (Bronx)
(718) 222-2000 (EBT's-2069) (Kings)
(212) 788-0646 (EBT's-0628) (New York)
(718) 206-4731 (EBT's (718) 206-4703) (Queens)
(718) 447-5983 (EBT's-5985) (Richmond)
(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #:

2014-021789

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
RUBAN AYALA, JR.,

Plaintiff(s),

**COMBINED DEMAND FOR
VERIFIED BILL OF
PARTICULARS & DISCOVERY**

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).
----- X

DEMAND FOR VERIFIED BILL OF PARTICULARS

PLEASE TAKE NOTICE that pursuant to CPLR 3041, plaintiff(s) is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. The exact date and time of the act or occurrence.
2. The specific location of the act or occurrence with reference to addresses, landmarks, or other identifying points of reference, including the direction and distance therefrom. If the occurrence took place inside a premise, state specifically the location within the premise and also include the block and lot of the premises.
3. State the injuries claimed, if any.
4. State those injuries claimed to be permanent.
5. If applicable, set forth the length of time it is alleged the plaintiff(s) was confined to:
 - (a) Hospital(s);
 - (b) Bed;
 - (c) House.
6. If applicable, set forth the amount claimed as special damages for:
 - (a) Physician(s) services;
 - (b) Nurses services;
 - (c) Hospital expenses;
 - (d) Drugs and medical supplies;
 - (e) X-rays and diagnostic tests.

For each of the foregoing elements of damages please state the name and address(es) of the provider(s) and the dates of treatment. If any of the foregoing elements of damages have been repaid to the plaintiff(s) or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff(s).

7. If applicable, state the total amount of all other special damages not specified in items above; and please state the

- (a) name and address of each service provider;
 - (b) each date of the service;
 - (c) amount of the expense for each provider;
 - (d) amount of any expense paid by a third-party (including any payment made to reimburse plaintiff);
 - (e) name and address of the third-party paying any expense; and
 - (f) amount of any unreimbursed expense paid by plaintiff(s) personally to each provider.
8. State the occupation of plaintiff(s) at the time of the incident; and please state the:
- (a) name and address of any employer for 5 years prior to alleged incident and up to the time of trial;
 - (b) length of time totally disabled from work;
 - (c) length of time partially disabled from work;
 - (d) amount claimed for lost earnings, if any;
 - i. if a loss of earnings claim is alleged, please state the yearly gross earnings for each year during 5 years prior to alleged incident and up to the time of trial; and
 - (e) number of days absent from work as a result of injuries sustained from the incident.
9. State the (a) name and address of any school attended by plaintiff(s) for 5 years prior to alleged incident and up to the time of trial; and (b) the number of days lost from school as a result of injuries sustained from incident.
10. State the home address of plaintiff(s) for a period of 5 years prior to the alleged incident to the present.
11. State any other name used by plaintiff(s) and the time period when the name was used.
12. State the date of birth and social security number of plaintiff(s) (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to determine whether plaintiff(s) is (are) Medicaid recipient(s) for purposes of determining whether a Medicaid lien may attach to any judgment or settlement obtained against the defendant(s).
13. State whether plaintiff(s) is (are) Medicare recipient(s). If plaintiff is or was a Medicare recipient please provide their Medicare identification number and social security number (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to verify that plaintiff(s) is (are) Medicare recipient(s) for purposes of defendant(s) meeting its (their) Medicare reporting obligations.
14. If plaintiff(s) has ever been convicted of a crime (including any guilty plea), please state (a) the NYSID number of plaintiff; (b) the dates of every conviction; (c) whether the conviction was state or federal; and (d) the county where each conviction occurred.
15. If the complaint alleges loss of services, set forth the pecuniary loss, if any, alleged in the complaint. Enumerate the damages for:
- (a) Loss of services;
 - (b) Consortium;
 - (c) Other expenses.
16. State those injuries arising from the use or operation of a motor vehicle which are claimed to be serious, as defined in Insurance Law § 5102 (d), if any.
17. If property damage is claimed, please state (a) all property damaged; (b) the fair market value of each item at the time it was damaged; (c) the cost of repairing each item; (d) the cost of replacing each item; (e) the date each item was acquired; (f) the purchase cost of each item; (g) the amount(s) provided by a third-party to reimburse damage; (h) the name and address of any third-party which reimbursed damage; and (i) amount of any unreimbursed payment made by plaintiff(s) to replace or repair a damaged item.
18. State the manner in which it is claimed the accident occurred.

19. State separately the acts or omissions constituting the alleged negligence of each of the answering defendant(s), if any.

20. State separately the acts of each of the answering defendant(s) constituting the intentional wrongs claimed, if any.

21. State the names of the employee(s) or agents of the answering defendant(s) who are alleged to have committed the acts set forth in the items above.

22. Describe any alleged dangerous and defective condition and or the object or instrumentality complained of, as well as the nature of the condition alleged.

23. State whether any repairs were made prior to the happening of the alleged accident.

24. If it is alleged that repairs were made prior to the happening of the accident, state when, where, and by whom, the repairs were made.

25. State whether actual or constructive notice is claimed or whether it is alleged that defendant created the condition complained of.

26. If actual notice is claimed, then set forth the following:

(a) The names of the employees, agents and/or servants of the defendant(s) to whom it will be alleged said actual notice was given;

(b) By whom will it be claimed that said actual notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said actual notice was given.

27. If constructive notice is claimed, state the length of time said condition is alleged to have existed prior to the happening of the alleged occurrence.

28. If prior written notice is claimed, specify the nature of such notice.

29. If prior written notice is claimed, then set forth the following:

(a) The name(s) of the entity, agency, employees, agents and/or servants of the defendant(s) to whom it will be alleged said prior written notice was given;

(b) By whom will it be claimed that said prior written notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said notice was given.

30. In any action where plaintiff(s) claim the violation of any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant(s).

31. If applicable, describe in what respects defendant(s) failed to provide plaintiff(s) with a safe place to work.

32. If applicable, state whether plaintiff(s) will allege that this defendant(s) was a party to a contract. If yes;

(a) State the parties to the contract;

(b) State the contract number.

33. If applicable, set forth each and every item of construction, excavation or demolition work which the plaintiff(s) will allege was not so constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate safety; setting forth the manner in which the construction, shoring, equipping, guarding, arranging, operating and/or conducting of the construction, excavating, or demolition work is alleged to have caused the plaintiff(s) alleged injury.

34. If applicable, state whether the plaintiff(s) will allege that this defendant(s) exercised control over the work being performed at the job site. If yes, state the nature and extent of the control allegedly exercised and the exact manner in which said control was exercised.

35. If applicable, state those injuries claimed to be "grave", as defined in the Workers' Compensation Law § 11.

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges defamation, the following items are additionally demanded:

36. Whether the alleged defamatory statement was communicated orally or in a writing.
37. With respect to each of the answering defendant(s), the particular words complained of and allegedly communicated.
38. The name(s) and address(es) of any person(s) it is alleged heard or received the defamatory statement(s).
39. If it is alleged that the defamatory statement(s) were communicated in a writing, set forth the date(s), nature, and content of the writing.
40. If it is alleged that any defamatory statement was published, set forth the date(s), nature and name of the media or publication and each republication of the alleged defamatory statement.
41. The circumstances, acts, and/or omissions which evince defendant(s) knowledge of the falsity, or reckless disregard of the truth, or malice, with respect to the statement(s) allegedly made.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges police misconduct, the following items are additionally demanded:

42. State the criminal court file and docket number of the criminal proceeding.
43. State the (a) the specific charges; (b) the disposition of each charge; and (c) the date of said disposition.
44. State the date and time taken into custody.
45. State the date of arraignment.
46. State the date and time released from incarceration.
47. State the name, address, and phone number of attorney(s) who represented plaintiff(s) in the criminal proceedings.
48. State the amount claimed for legal fees, if any.
49. State the NYSID number of plaintiff(s).
50. For each criminal proceeding, including arraignment, please state the (a) the type of proceeding; (b) the date(s) of the proceeding; (c) the name of reporter who transcribed the proceeding; and (d) the name of Judge who presided over the proceeding.

ALLEGED EXPOSURE TO LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) allege damages as a result of exposure to lead-based paint, the following items are additionally demanded:

51. The day, month, and year of initial exposure;
52. The day, month and year when exposure terminated;
53. The address(es), including apartment numbers, of every premises where it is alleged that plaintiff(s) were exposed to lead-based paint;
54. The highest recorded blood lead level for plaintiff(s) and the date of the diagnosis;
55. The date of the initial diagnosis;
56. Whether it is claimed that plaintiff(s) sustained any cognitive injuries or learning disabilities as a result of any alleged exposure and if so, state the nature of the disability, when any such disability was diagnosed, the school and current grade level of plaintiff(s) and whether plaintiff(s) have been placed in any special classes.

ALLEGED ACTION FOR WRONGFUL DEATH

Where applicable, in addition to the foregoing, if plaintiff(s) allege wrongful death, the following items are additionally demanded:

57. State the amount claimed as pecuniary loss, specifying the loss of parental guidance by each person dependant upon support of the decedent.

58. State the names, addresses, ages, and relationships to the decedent of all persons to whose support it is claimed the decedent contributed.

59. State the nature and purpose of the support contributed as to each person supported, including how and when support was given.

60. State the date, place and cause of death.

61. State the length of time the decedent remained conscious of the injuries sustained.

62. State the total amounts claimed as special damages for:

- (a) Funeral and burial expenses;
- (b) Administration expenses;
- (c) Any other damages claimed.

ALLEGED NEGLIGENT EMERGENCY MEDICAL RESPONSE

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent emergency medical response, the following items are additionally demanded:

63. The exact dates and times of the claimed acts or occurrences.

64. The specific locations of the claimed acts and/or occurrences with reference to addresses, landmarks, or other identifying points of reference. If the claimed acts and/or occurrences took place inside a premise, state specifically the location within the premise and/or the department(s), as applicable, of said premises.

65. The specific time when the need for medical attention was first noticed by the plaintiff in distress, or by another person.

66. If a call for emergency assistance was made, indicate:

(a) the time at which the call was placed.
(b) the person who placed the call and, if other than the patient, his or her relationship to the patient.

(c) the description or report of injury or emergency given.

(d) if more than one call was made to 911.

(e) what the caller was told by the operator.

67. If more than one call was made to 911, indicate:

(a) the total number of calls made to 911.

(b) the time of each respective subsequent call,

(c) the person or people who made each respective subsequent call (if different from the first call).

(d) if the description of the injury or emergency changed after the first call to 911, indicate what the change was, why the description changed, when the change in condition was first noticed prior to it being reported to 911, and when the change was reported to 911

(e) what the caller was told by the operator during each respective call.

68. Indicate if 911 had been contacted earlier in the day of the incident for the same or similar condition. If so, indicate the person or persons who made the call, and when they made it. Describe what the person or persons were told by the operator.

69. Indicate what time emergency personnel first arrived. Also indicate, if known, the respective names and ranks of emergency personnel who arrived on the scene. If known, indicate if the personnel were from the FDNY or the NYPD. If the

personnel were not from either of those two agencies, identify, if known, the agency or hospital the personnel were from.

70. Indicate, if known, what time any additional and/or subsequent emergency personnel arrived after the initial emergency personnel. Indicate if such additional personnel were from the FDNY or the NYPD. If the additional personnel were not from those two agencies, identify the agency or agencies the personnel were from. Indicate the names and ranks of any additional emergency personnel who arrived. Describe any actions taken, and treatment provided by additional emergency personnel on-scene, or, if applicable, en route to a hospital.
71. State whether a claim is made that the answering defendant ignored or misdiagnosed complaints, signs, or symptoms of the patient plaintiff.
- (a) If such a claim is made, state specifically by name or description all complaints, signs, and symptoms that the answering defendant(s) ignored or misdiagnosed.
 - (b) State what injury is claimed as the result of the answering defendant ignoring or misdiagnosing the complaints, signs, and symptoms.
 - (c) State specifically at what point during treatment the complaints, signs, and symptoms were ignored or misdiagnosed.
 - (d) State what the misdiagnosis of the complaints, signs, and symptoms was.
72. Describe the treatment, if any, provided by each of the arriving emergency personnel. Indicate, with specific time(s) and location(s):
- (a) if the patient was intubated.
 - (i) If it is claimed that intubation was improper, describe how and why the intubation was improper, and the affect such alleged improper intubation had on the patient's condition, illness, or injury.
 - (ii) If it is claimed that the patient should have been, but was not intubated, describe the affect such alleged lack of intubation had on the patient's condition, illness, or injury.
 - (iii) If it is claimed that there was a delay in the patient being intubated, state the length of the delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.
 - (b) if an intravenous line was started.
 - (i) If it is claimed that an intravenous line was improper, describe how and why the intravenous line was improper,

and the affect such alleged improper use had on the patient's condition, illness, or injury.

(c) if a defibrillator was required or used.

- (i) If it is claimed that a defibrillator was improperly used, describe how and why the use was improper, and the affect such alleged improper use had on the patient's condition, illness, or injury.
- (ii) If it is claimed that a defibrillator should have been, but was not used, explain the affect such alleged lack of use had on the patient's condition, illness, or injury.
- (iii) If it is claimed that there was a delay in using a defibrillator, state the length of delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.

(d) if oxygen was required or given.

- (i) if it is claimed that oxygen should have been given and was not, explain why oxygenation was required, as well as the affect that the alleged lack of oxygenation had on the patient's condition, illness, or injury.
- (ii) if it is claimed that oxygenation was improper, explain how it was improper, and the affect that such alleged improper oxygenation had on the patient's condition, illness, or injury.
- (iii) if it is claimed that there was a delay in oxygenation of the patient, state the length of delay, and the affect such alleged delay had on the patient's condition, illness, or injury.

(e) if any medication was improperly administered, contraindicated, administered in an improper dosage or improper manner.

- (i) State the name and description of each drug or medication improperly administered. Describe the manner in which the drug or medication was improperly administered. State the injury claimed as a result of the improperly administered drug or medication. State specifically at what point the drugs were administered improperly.
- (ii) State the name and description of each drug or medication administered in an improper dosage. Indicate what the improper dosage was. State the injury claimed as a result of the improper dosage. State specifically at what point during treatment the drugs were administered in an improper dosage.

- (iii) State the name and description of each drug or medication claimed to be contraindicated. State in what way it is claimed that each such drug or medication was contraindicated. State the injuries claimed as a result of the administering of the contraindicated drug or medication. State specifically at what point during treatment the contraindicated drug or medication was administered.
- 73. Indicate if the plaintiff was transported to a hospital. Specify who transported the plaintiff to the hospital. Indicate if the plaintiff requested to be taken to a specific hospital. Identify the hospital to which the plaintiff was taken. Indicate what time the plaintiff was transported from the scene to the hospital and with whom if anyone she was accompanied by.
- 74. If it is claimed that emergency personnel lacked equipment to adequately provide aid, describe the equipment alleged to have been missing, and why such equipment is believed to have been missing. Describe how the alleged lack of equipment affected the patient's condition, injury, or illness.
- 75. State whether a claim is made as to defective equipment.
 - (a) If such a claim is made, identify the equipment and state the nature of the defect.
 - (b) If notice of such a defect is a prerequisite to liability, state whether actual or constructive notice is claimed.
 - (c) If constructive notice is claimed, state how long the condition existed.
- 76. State separately the acts or omissions constituting the alleged negligence and/or medical malpractice of each of the named defendants.
- 77. State the manner in which it is claimed the alleged injury arose.
- 78. State separately the acts of each of the named defendants constituting the intentional wrongs claimed, if any.
- 79. State the names of the employee(s) or agents of the answering defendant who are alleged to have committed the acts set forth in the paragraphs above.
- 80. If it is claimed that the answering defendant violated any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes ordinances, rules or regulations alleged to have been violated by the answering defendant, as well as any statute, ordinance, rule, order, requirement or regulation claimed to have been violated by each of the named defendants.

81. State all injuries claimed as the result of the alleged negligence of the answering defendant herein, and state specifically which of the above injuries are claimed to be permanent in nature.
82. For actions other than for wrongful death, state the length of time the plaintiff was confined to each of the following by virtue of the acts or omissions of the answering defendant(s) herein.
- (a) Hospital, listing separately each period of hospitalization with the name and address of each hospital.
 - (b) Home.
 - (c) Bed.
83. Set forth the amount claimed as special damages for:
- (a) Physician(s) services;
 - (b) Nurses services;
 - (c) Hospital expenses;
 - (d) Drugs and medical supplies and/or equipment;
 - (e) X-rays and diagnostic tests;
 - (f) Rehabilitative and/or therapy services;
 - (g) Home health services;
 - (h) Any other expenses claimed.
84. For each of the foregoing elements of damages please state the name and address(es) of the provider(s), pharmacies, the dates of treatment and/or dates of use and list of prescriptions/medications filled. If any of the foregoing elements of damages have been repaid to the plaintiff or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff.
85. Set forth:
- (a) Occupation of plaintiff at the time of the occurrence;
 - (b) Whether plaintiff was self-employed, and, if so, state the address of her place of employment and the nature of the business or occupation in which she was engaged immediately prior to the occurrence.
 - (c) Name and address of plaintiff's employer, if any;
 - (d) Average weekly, monthly and/or annual gross earnings;
 - (e) State separately, the length of time totally and/or partially disabled;
 - (f) Amount claimed for lost earnings, if any;
 - (g) Number of days lost from work;
 - (h) Number of days lost from school;
 - (i) Name and address of school attended by plaintiff at the time of the date of accident.
86. Provide plaintiff's present residence address and plaintiff's residence address at time of the occurrence.
87. List all other names used by plaintiff.
88. List plaintiff's date of birth and social security number.

DEMAND FOR DISCOVERY & INSPECTION

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand you are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control; but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS

1. If the City of New York is a named defendant, please identify the agency(s) involved.
2. For each person you believe may have been a witness to the incident which caused an injury, state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
3. For each person you believe may have been a witness to the condition which allegedly caused an injury, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
4. For each person you believe may be a witness to an injury alleged in this lawsuit, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
5. For each expert witness whom you expect to call at trial, please state the (a) name of the expert; (b) business address of the expert; (c) qualifications of the expert; (d) curriculum vitae of the expert; (e) subject matter in reasonable detail that the expert is expected to testify; (f) substance of the facts and opinions on which each expert is expected to testify; and (g) a summary of the grounds for each opinion.
6. If any sum has been paid or promised to plaintiff(s) by any person claimed to be liable (within the meaning of § 15-108, General Obligations Law) for any of the injuries (or damages) alleged in the complaint, please set forth the name(s) and address(es) of the person(s), corporation(s), insurance company(s), or other entity(s) making such payment or promise and state the amount(s) which have been, or will be, with reasonable certainty received by plaintiff(s).
7. For each person you believe may have provided an oral or written statement about the incident, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
8. Furnish a copy of each document you believe may have been prepared by the answering defendant(s) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation, including any statement made by any person identified in response to Item 6 above, and any note, memorandum or recording of any oral statement.
9. Furnish the sum and substance of any unrecorded oral statement you believe may have been given by each defendant (or employee, or former employee, of a defendant) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation.

10. Provide a copy of any (a) any insurance claim arising out of the incident alleged in this lawsuit; (b) any workers' compensation claim arising out of the incident alleged in this lawsuit; (c) any pension claim arising out of the incident alleged in this lawsuit; (d) any no-fault claim arising out of the incident alleged in this lawsuit; and (e) any other claim seeking redress for the incident alleged in the lawsuit.

11. Furnish a copy of any Freedom of Information Law request made to the answering defendant(s) and any response thereto, which you intend to use for any purpose in this litigation.

12. Furnish copies of any subpoenas served on any party, or any other individual or entity concerning this litigation.

13. Provide a copy of any transcript of testimony involving the incident alleged in the lawsuit (including (but not limited to) any examinations under oath, transcript or materials related to a Department of Motor Vehicle hearing, departmental hearing, and criminal proceeding).

14. Provide a signed copy of any hearing held pursuant to General Municipal Law § 50-h.

15. Please furnish a copy of each accident report, if any, made by, or on behalf of your client(s) concerning the occurrence of the injuries (or damages) alleged in the complaint.

16. Furnish a copy of any written notice, Big Apple Corporation map or other document giving notice of an allegedly defective or dangerous condition at the place where the injuries (or damages) alleged in the complaint occurred, prior to the occurrence thereof.

17. Furnish a reasonably clear copy of each photograph and or each video depicting the place where the injuries (or damages) alleged in the complaint occurred.

18. If plaintiff intends on utilizing any physical evidence at trial, please (a) provide a photograph of the physical evidence; and (b) make the physical evidence available for inspection.

19. In any action for injuries, including death, allegedly sustained by a spouse, child or other family member of a plaintiff, please furnish a copy of each marriage, birth and death certificate, as applicable.

20. In any representative action, please furnish a copy of the court order appointing the representative.

21. With respect to any earnings (or profits) claimed to have been lost as a result of the injuries (or damages) alleged in the complaint, please furnish a copy of each state and each federal income tax return including any W-2 statements, together with attachments, filed by, or on behalf of, plaintiff(s) for the year in which the said injuries (or damages) occurred and for each of the two preceding years, and for all years in which continuing losses are claimed.

22. In any action for wrongful death, please furnish a copy of the federal estate tax return filed for decedent's estate, and a copy of each state and each federal income tax return, including W-2 statements, filed by, or on behalf of the decedent for each of the two years before death.

23. Furnish a copy of each medical provider's report and medical bills, including pharmaceutical bills and bills for durable medical goods, with ICD-codes, referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **after** the occurrence of the injuries alleged in the complaint, or any treatment reasonably related thereto.

24. Furnish a copy of each medical provider's report referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **before** the occurrence of the injuries alleged in the complaint and reasonably related thereto.

25. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to (a) obtain each document referring to any treatment of plaintiff(s) (including psychological treatment) for any injury alleged in this lawsuit; and (b) speak with any medical provider which provided any treatment to plaintiff(s). This demand includes treatment which is reasonably related to any injury alleged in this lawsuit. Please utilize form located New York State Unified Court System webpage located at www.nycourts.gov.

26. In any action by or on behalf of a student, please furnish duly executed authorizations permitting the Office of the Corporation Counsel to examine and copy the school, attendance and health records of the plaintiff(s) on file at the school(s) attended at the time of the occurrence and thereafter.

27. If plaintiff received workers' compensation benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the workers' compensation file; and (b) a copy of the worker's compensation file.

28. If plaintiff received no fault benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the no fault file; (b) a copy of the no fault file.

29. If plaintiff alleges economic loss, please provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records on file at the last employer.

30. State whether plaintiff is currently receiving, has applied for or is eligible for Social Security Disability payments. If plaintiff is currently receiving Social Security Disability payments, please identify when eligibility began and identify his/her SSDI number and the medical condition on which basis coverage was awarded. If plaintiff has received Social Security Disability payments at any point in the past, please identify the period or periods of time when plaintiff was eligible and identify his/her SSDI number and medical condition on which basis coverage was awarded.

31. If, in your response to the prior request, you indicated plaintiff has ever applied for or been eligible for Social Security Disability payments, please provide (a) copies of all social security disability records, including any determination and decision; and (b) a duly executed authorization (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain Social Security disability records from the Social Security Administration.

32. Identify all health care benefits, including but not limited to private health insurance carriers and public health care programs (e.g., Medicaid), plaintiff has received or which plaintiff will become eligible to receive as a result of injuries allegedly related to the subject accident/incident and provide copies of plaintiff's identification cards for all identified health care programs.

33. State whether plaintiff is or has ever been a Medicare recipient and, if so, provide plaintiff's Medicare Health Insurance Claim Number ("HICN") and a copy of his/her HICN card. If no card is available, please provide the date eligibility began. If plaintiff has received Medicare coverage at some point in the past and no HICN card is available, please identify the period or periods of time when plaintiff was eligible.

34. Furnish the name and address of the attorney(s) who have appeared in this action.

35. Furnish the names of the parties, the court, and the index number of each other action, if any, commenced by or on behalf of plaintiff(s) concerning any of the injuries (or damages) alleged in the complaint.

DEMANDS FOR COLLATERAL SOURCE INFORMATION

36. Entities that have provided payments for medical treatment. Identify by name, address and policy number, any source that has provided payments to plaintiff, or to plaintiff's spouse, domestic partner, or parent for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

37. Entities that have provided payments on account of disability. Identify by name, address and policy number, any source that has provided payments to plaintiff, by reason of plaintiff's partial or total inability to work. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

38. Entities from which plaintiff is eligible to receive medical coverage. Identify by name, address and policy number, any source from which plaintiff is eligible to receive medical coverage for the

injuries received in this accident whether or not plaintiff has actually applied for such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

39. Entities from which plaintiff is eligible to receive disability benefits. Identify any source by name, address and policy number, any source from which plaintiff would be eligible to receive payments in the event of plaintiff's partial or total inability to work, whether or not plaintiff has applied for or received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

40. Entities to which plaintiff has applied for medical benefits. Identify any source by name, address and policy number, any source to which plaintiff, or plaintiff's spouse, domestic partner, or parent, has submitted claims or applied for benefits for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident whether or not such benefits were received. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

41. Entities to which an application for disability benefits has been made. Identify any source by name, address and policy number, any entity to which an application has been made for payments by reason of partial or total inability to work, whether or not plaintiff has received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

42. Entities to which plaintiff has paid premiums to obtain medical or disability coverage. Identify any entity by name, address and policy number to which plaintiff, or plaintiff's spouse, domestic partner, or parent paid premiums to obtain medical or disability coverage for two years prior to the incident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for proof of such payment of premiums.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) allege police misconduct, the following items are additionally demanded:

43. Provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records pertaining to all criminal proceedings related to the incident alleged in this lawsuit. Please provide a separate authorization for each entity which maintains these records (including (but not limited to) the Office of the District Attorney, the New York City Police Department, and criminal court).

44. Provide copies of records pertaining to all criminal proceedings related to the incident alleged in the lawsuit, including (but not limited to) transcripts, certificates of disposition, police records, criminal records, District Attorney records, and photographs, including copies of any photographs of the plaintiff(s) taken by the defendant(s) at the time of the arrest.

45. If entitlement to reimbursement for legal fees is claimed, please provide copies of any bills incurred.

46. Provide the name, address, and phone number of any attorney representing plaintiff(s) concerning the criminal charges related to the incident alleged in this lawsuit.

ALLEGED PROPERTY DAMAGE

Where applicable, in addition to the foregoing, if plaintiff(s) allege property damage, the following items are additionally demanded:

47. For each item of property damaged:

(a) Photograph(s) and or videotapes depicting the items alleged to have been damaged, prior to damage;

(b) Photograph(s) and or videotapes depicting items alleged to have been damaged, subsequent to damage;

(c) Original purchase receipts, cancelled checks, and/or charge slips for items alleged to have been damaged;

(d) Appraisals, warranties, etc. pertaining to the items alleged to have been damaged.

48. True and accurate copies of any and all insurance agreements held by plaintiff on day of said incident and pertaining to property damage and/or loss.

49. True and accurate copies of any and all notices of loss or claims made on the above policies pertaining to the damage alleged in the complaint.

ALLEGED NEGLIGENT SUPERVISION

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent supervision, the following items are additionally demanded:

50. For every individual who allegedly failed to provide adequate supervision, please state (a) the name of the individual; (b) the address and phone number of the individual; (c) the name of the entity who employs the individual; (d) the title of the individual; (e) the date that the individual failed to provide adequate supervision; and (f) the time that the individual failed to provide adequate supervision. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each individual. This demand includes all individuals, even if employed by any of the parties.

51. Identify the name or names of the person(s) it is alleged received inadequate supervision.

52. Provide the name(s) of any person(s) plaintiff will claim assaulted him/her with reference to the claim being asserted against the answering defendant(s).

53. If the person(s) identified in above have not yet appeared in this action, please provide copies of all documents, including but not limited to, affidavits of service and correspondence, which reflect any attempt to obtain jurisdiction over the individual(s).

54. Provide copies of any documents filed with or against any governmental agency(s) concerning the actions of any person(s) whom plaintiff(s) alleges caused the damages alleged in the complaint, including any criminal complaints filed and the disposition thereof.

55. For each individual you believe may have provided an oral or written statement concerning the supervision of any person involved in the incident, state (a) the name of any individual who provided a statement; and (b) the address and phone number of any individual who provided a statement. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have provided a statement. This demand includes all individuals, even if employed by any of the parties.

ALLEGED PREMISES LIABILITY

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) failed to properly maintain a premises, the following items are additionally demanded:

56. If it is alleged that the answering defendant owned the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) ownership of the premises.

57. If it is alleged that the answering defendant(s) leased the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) tenancy.

58. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

59. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

60. Provide a copy of the title for the vehicle being operated by plaintiff.
61. Provide a copy of plaintiff's drivers license.
62. Provide a copy of the registration for the vehicle in which plaintiff(s) was located when the incident occurred.
63. Provide a copy of any (a) repair record (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident; and (b) maintenance records (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident.
64. Provide a copy of any recall notice received regarding the vehicle in which plaintiff(s) was located when the incident occurred.
65. Provide photographs taken of the vehicle(s) involved in the accident taken:
 - (a) Before the accident;
 - (b) After the accident.
66. Provide any estimates to repair the vehicle involved in this accident.
67. Provide any records or receipts for towing of the vehicle involved in this accident.
68. Provide a copy of the MV-104 filed by, or on behalf of, the plaintiff as a result of this accident.
69. Provide a copy of any accident report provided to any insurance company regarding this accident.
70. Provide any notes or memorandum describing this accident.
71. Provide a copy of any transcript of any Department of Motor Vehicle hearing taken with respect to this accident.
72. Provide the date, location, name of defendant or respondent, and name of Judicial Hearing Officer who presided over, any Department of Motor Vehicle hearing taken with respect to this accident.
73. Provide a copy of any insurance policy (including any umbrella or excess policy) covering the vehicle in which plaintiff(s) was located at the time of the incident.
74. Provide a copy of the no-fault file pertaining to plaintiff(s).

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) defamed plaintiff(s), the following items are additionally demanded:

75. Provide a copy of any writing, publication (including any re-publications), and broadcast containing the alleged defamatory statement(s).
76. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate the untruthfulness of the alleged defamatory statement(s).
77. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate defendant(s) malice or reckless disregard for the truth.
78. Provide the name of any individual who you believe has information concerning the untruthfulness of the alleged defamatory statement(s) or whether the statements were made with malice or reckless disregard for the truth, stating (a) the name of the individual(s); and (b) the address and phone number of the individuals. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person. This demand includes all individuals, even if employed by any of the parties.
79. Provide copies of any documents, bills, invoices or writings which plaintiff(s) intend to use to prove any alleged special damages.

ALLEGED LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges injuries as a result of exposure to lead-based paint, the following items are additionally demanded:

80. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain birth and prenatal records of plaintiff(s); the authorization must include the name and address of the hospital or facility where plaintiff(s) was born and the date of birth of plaintiff(s).

81. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of any medical provider who provided prenatal care; the authorization must include the name and addresses of each medical provider and the dates of treatment.

82. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of all (a) health providers who have rendered pediatric care (including treatment for any of the injuries currently alleged) to plaintiff(s); and (b) health care providers that screened blood of plaintiff(s). The authorizations must contain the name and address of each medical provider as well as the dates of treatment or testing.

83. Provide duly executed authorizations enabling defendant(s) to obtain the records of any and all schools, and/or day care centers attended by the plaintiff(s) to date; the authorizations must include the name(s) and address(es) of the schools and the dates of attendance.

84. Provide the name and address of the academic institution most recently attended by the infant plaintiff's natural mother and a duly executed authorization allowing that institution to release its records to the defendant(s). If the infant plaintiff's mother is not the custodial parent, please provide the same information with respect to any adult acting as the infant plaintiff's guardian or caretaker.

85. If the infant plaintiff has any siblings, please provide the following for each such sibling:

(a) Name, date of birth and current address;

(b) Names and addresses of any and all schools, pre-schools or day-care centers attended, and duly executed authorizations allowing those institutions to release their records to the defendant(s).

86. For each infant plaintiff, provide the name, date of birth and last known address of the biological father.

87. Provide copies of any photographs, movies, or videotapes depicting the premises.

88. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

89. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S))

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, all other parties (excluding plaintiff(s)) are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS TO PARTIES (EXCLUDING PLAINTIFF(S))

1. Provide copies of complete contents of insurance policies in effect on the date of occurrence, including all endorsements, terms, and conditions, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.

2. Provide copies of all excess and umbrella insurance policies in effect on date of occurrence, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.

3. Provide copies of all certificates of insurance in effect on the date of occurrence, including but not limited to, any which name this defendant, or any of its agencies, as an insured or as an additionally insured.

4. Copies of all contracts, sub-contracts, leases, franchises, and indemnification agreements in effect on date of occurrence.

5. Provide copies of any documents, records or photographs relating to any repairs made to the location, premises or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.

6. Provide copies of any documents, records or logs relating to any maintenance (including cleaning, altering, and shoveling) performed at, or to, the location, premises, or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.

7. Copies of all accident reports kept in the regular course of business regarding the occurrence complained of in plaintiff's complaint.

8. Provide a copy of plaintiff(s) Bill of Particulars and any discovery items previously exchanged, (including but not limited to; deposition transcripts and reports of physical examinations conducted of the plaintiff), and served upon or by defendant(s) or third-party defendant(s).

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING ALLEGED ROADWAY, SIDEWALK, AND CONSTRUCTION ACCIDENTS

Where applicable, in addition to the foregoing, in any action alleging defective roadway, sidewalk, or construction, the following items are additionally demanded:

9. Provide copies of all applications for permits, cut forms, opening tickets, work tickets, and paving orders.

10. Provide copies of all drawings, schematics, blueprints, strip maps, diagrams of underground facilities and of street hardware, including manhole covers, castings, and gratings.

11. Provide copies of all daily, weekly, and/or monthly progress reports, job progress photographs, and photographs of roadway color coding for entire period of construction.

12. Provide copies of all maintenance, inspection and repair records for the entire period of construction.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, in any action in which it is alleged that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

13. Provide a copy of the title for any vehicle involved in the incident.

14. Provide a copy of the driver's license for the applicable driver involved in the incident.

15. Provide a copy of the registration for the applicable vehicle involved in the incident.

16. Provide the following records for the applicable vehicle involved in the incident for a two-year period prior to the alleged incident: (a) repair records (including logs, bills, and receipts); and (b) maintenance records (including logs, bills, and receipts).

- incident.
17. Provide a copy of any recall notice received regarding any vehicle involved in the incident.
 18. Provide photographs of the vehicle involved in the accident taken:
 - (a) before the accident;
 - (b) after the accident.
 19. Provide any estimates to repair the vehicle involved in this accident.
 20. Provide any records or receipts for towing of the vehicle involved in this accident.
 21. Provide a copy of any MV-104 related to the incident.
 22. Provide a copy of any Department of Motor Vehicle hearing related to the incident; and provide (a) the date, location, name of the parties, and name of Judicial Hearing Officer who presided over any Department of Motor Vehicle hearing.
 23. Provide a copy of any accident report provided to any insurance company regarding this accident.
 24. Provide any notes or memorandum describing this accident.
 25. Provide a copy of any insurance policy, including any umbrella or excess policies, covering the vehicle defendant or third-party plaintiff was operating at the time of this accident.
 26. Provide a copy of any no-fault file pertaining to plaintiff(s) related to the incident.

**ADDITIONAL DEMANDS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION
AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, any third party-plaintiff who has an action against a party represented by the Corporation Counsel, it is requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control; but, in any event, no later than forty-five days before trial.

27. Provide a copy of any document (with all attachments) previously exchanged by the parties (including pleadings, bills of particulars, deposition transcripts, medical records, correspondence, motions, discovery responses, etc.).

28. Provide a copy of all court orders and stipulations issued in the litigation.

**DEMAND FOR VERIFIED BILL OF PARTICULARS TO ANY THIRD-PARTY PLAINTIFF WHO
HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

PLEASE TAKE NOTICE that pursuant to CPLR 3041, any third party-plaintiff who has an action against a party represented by the Corporation Counsel is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. State separately the alleged negligence of any party represented by the Corporation Counsel, if applicable.
2. State separately the alleged intentional wrongs committed by any party represented by the Corporation Counsel, if applicable.
3. State the name of any employee or agent of any party represented by the Corporation Counsel alleged to have committed any act which contributed to an injury.

4. State (a) whether any repair was made to the accident location prior to the happening of the alleged accident; (b) when any repair was made; (c) where any repair was made; (d) who made any repair; and (e) what repairs were made.

5. State (a) whether any party represented by the Corporation Counsel had notice of an alleged defective condition which contributed to an injury; (b) which party had notice; (c) whether the party had actual notice of a condition; (d) whether the party had constructive notice of a condition; and (e) whether it is alleged that the party created the condition.

6. If actual notice is claimed, please state (a) the name of any individual(s) who had actual notice; (b) the job title of any individual(s) who had actual notice; (c) the employer of any individual(s) who had actual notice; and (d) the address and phone number of any individual(s) who had actual notice. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have had actual notice. This demand includes all individuals, even if employed by any of the parties.

7. If constructive notice of a condition is claimed, please state the alleged condition and the length of time said condition is alleged to have existed prior to the happening of the alleged incident.

8. If third-party plaintiff(s) claims the violation of any statute, ordinance, rule, order, regulation, or directive, please state separately all such statutes, ordinances, rules, regulations, and directives alleged to have been violated by any party represented by the Corporation Counsel.

9. If applicable, please state whether any party represented by the Corporation Counsel was a party to a contract; and please state the:

- (c) parties to the contract;
- (d) contract number.

10. If applicable, please state any item of construction, excavation, and demolition work which was not so constructed, shored, equipped, guarded, arranged, operated, and conducted as to provide reasonable and adequate safety; and please state (a) the manner in which the work caused an alleged injury; and (b) if applicable, the control exercised by any party represented by the Corporation Counsel and the exact manner in which said control was exercised.

Dated: New York, New York
June _____, 2014

Yours, etc.
ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

TO:

NEIL WOLLERSTEIN, ESQ.
the attorney(s) for Plaintiff(s)
59 MAIDEN LANE, 23RD FLOOR
NEW YORK, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
RUBAN AYALA, JR.,

Plaintiff(s),

NOTICE OF DEPOSITION

-against-

Index #: 022595/2014E

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Law Dept. #: 2014-021789

Defendant(s).

----- x
PLEASE TAKE NOTICE, that pursuant to Article 31 of the Civil Practice Law and Rules,
the undersigned will take by deposition the testimony of all adverse parties at a time and date to be mutually
agreed upon at the pre-calendar conference.

PLEASE TAKE FURTHER NOTICE, that at the time of the taking of the testimony the
said adverse parties shall produce all books and papers in their possession relating to the issues upon which
said parties are to be examined and upon your failure to so produce them, parol and/or secondary evidence
thereof and of the contents of the same will be required.

Yours, etc.
ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

TO:
NEIL WOLLERSTEIN, ESQ.
the attorney(s) for Plaintiff(s)
59 MAIDEN LANE, 23RD FLOOR
NEW YORK, NY 10038

VERIFICATION

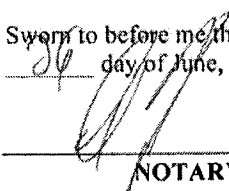
Re: RUBAN AYALA, JR.; LD #: 2014-021789

ANNA M. CHETNIK being duly sworn deposes and says that: deponent is an employee of the Office of the Corporation Counsel; that deponent has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to deponent's own knowledge, except as to the matters alleged upon information and belief, which deponent believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof.

Dated: New York, New York
June 26, 2014


ANNA M. CHETNIK

Sworn to before me this
26 day of June, 2014


NOTARY PUBLIC

AINSLY HARRIS, JR.
Commissioner of Deeds
City of New York - No. 2-11278
Commission Expires September 1, 2014

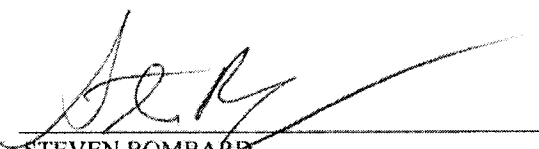
STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: New York, New York
June 26, 2014

By:


STEVEN BOMBARD
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

Please do not send correspondence to the above named individual unless otherwise directed. See Answer back for additional contact information.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

x

RUBAN AYALA, JR.,

Plaintiff(s),

AFFIDAVIT OF SERVICE

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).

Index #: 022595/2014E

Law Dept. #: 2014-021789

STATE OF NEW YORK)

: ss.:

COUNTY OF NEW YORK)

x

Subeln Ety, being duly sworn deposes and says that:

1. The deponent is not a party to the action and is 18 years of age or older.
2. On 06/26/2014 the deponent served the annexed ANSWER AND

DEMANDS upon the following person or persons:

RUBAN AYALA, JR.
by mailing a copy to his/her/their attorney(s),
NEIL WOLLERSTEIN, ESQ.
at 59 MAIDEN LANE, 23RD FLOOR
NEW YORK, NY 10038

being the address designated by said attorney(s) for that purpose by depositing the same in a first class, postpaid, properly addressed wrapper, in a post office or official depository under the exclusive care and custody of the United States Postal Service within the State of New York pursuant to CPLR 2103(b)(2).

Subeln Ety
Subeln Ety

Sworn to before me this

26 day of June, 2014.

Ingrid Dennie

INGRID DENNIE
Commissioner of Deeds
City of New York No. 2-13458
Certificate Filed in New York County
Commission Expires December 1, 2015

Index #: 022595/2014E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RUBAN AYALA, JR.,

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ROBERT ANDERSON, POLICE OFFICER JOHN DOE
AND POLICE OFFICER JOHN ROE,

Defendant(s).

ANSWER AND DEMANDS

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF
NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT,
100 Church Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)
(212) 356-2680/2683

All Other Matters (by county of venue)

(718) 590-3487 (EBT's-3971) (Bronx)

(718) 222-2000 (EBT's-2069) (Kings)

(212) 788-0646 (EBT's-0628) (New York)

(718) 206-4731 (EBT's (718) 206-4703) (Queens)

(718) 447-5983 (EBT's-5985) (Richmond)

(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #: **2014-021789**

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RUBAN AYALA, JR.,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ROBERT ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).
-----X

AMENDED ANSWER

Index #: 022595/2014E

Law Dept. #: 2014-021789

Your File #: NW-588

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT, DETECTIVE ABDIEL ANDERSON, by
ZACHARY W. CARTER, Corporation Counsel, answering the complaint, allege upon
information and belief:

1. Deny each allegation set forth in paragraph(s) 12-16, 18, 23-29, 31-35, 37,
38, 40-45, 47-53, 55-59, 62-79, 82-88, inclusive.

2. Deny knowledge or information sufficient to form a belief with respect to
the truth of the allegations set forth in paragraph(s) 1, 5-8, 17, 36, 61, 81, inclusive.

3. Deny the allegations set forth in paragraph(s) 19-21, inclusive, except that
a notice of a claim was presented, that more than thirty days have elapsed without adjustment
thereof.

4. Deny each allegation set forth in paragraph(s) 2, 3, 9, 10, 11, inclusive,
except that the City of New York is a municipal corporation which employed DETECTIVE
ABDIEL ANDERSON and maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 22, 30, 39, 46, 54, 60, 80, inclusive, except as otherwise pleaded herein.

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

12. Plaintiff(s)' complaint fails to allege a prima facie case against the defendant answering hereby.

13. Plaintiff(s)' complaint fails to state a cause of action upon which relief can be granted.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

ZACHARY W. CARTER
Corporation Counsel
100 Church Street
New York, New York 10007

VERIFICATION

U. ROSE VIVINETTO an attorney admitted to practice before the Courts of the State of New York, affirms pursuant to Rule 2106 of the Civil Practice Laws and Rules: affirmant is an employee of the Office of the Corporation Counsel; that affirmant has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to affirmant's own knowledge, except as to the matters alleged upon information and belief, which affirmant believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof; and further swears that on this date he/she served said answer, cross-claim(s) and counterclaim(s), if any, together with the accompanying combined demands for particulars and discovery upon:

NEIL WOLLERSTEIN, ESQ.
the attorney(s) for Plaintiff(s)
at 59 MAIDEN LANE, 23RD FLOOR
NEW YORK, NY 10038

by mailing a copy to the person at the address designated by him or her for that purpose by depositing the same in a first class, postpaid, properly addressed wrapper, in a post office or official depository under the exclusive care and custody of the United States Postal Service within the State of New York.

Dated: New York, New York
September 16, 2014


U. ROSE VIVINETTO

STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: New York, New York
September 16, 2014

By: 
U. ROSE VIVINETTO
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

AFFIRMATION OF SERVICE

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

The undersigned, an attorney admitted to practice in the courts of New York State, shows: that she is employed in the office of the Corporation Counsel of the City of New York, and affirms this statement to be true under the penalties of perjury, pursuant to Rule 2106 CPLR:

That on the 16 day of September, 2014, she served the annexed AMENDED ANSWER upon:

NEIL WOLLERSTEIN, ESQ.
the attorney(s) for Plaintiff(s)
at 59 Maiden Lane, 17th Floor
New York, NY 10038

being the address within the State theretofore designated by them for that purpose, by causing to be deposited a copy of the same, enclosed in a prepaid wrapper in a post office box situated in the Borough of Manhattan, City of New York, regularly maintained by the Government of the United States.

Dated: New York, New York
September 16, 2014



U. ROSE VIVINETTO

Index #: 022595/2014E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RUBAN AYALA, JR.,

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ROBERT ANDERSON, POLICE OFFICER JOHN DOE
AND POLICE OFFICER JOHN ROE,

Defendant(s).

AMENDED ANSWER

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF
NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ABDIEL ANDERSON,

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Please refer to the following Law Dept. #: **2014-021789**

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2014-037229

FILED: BRONX COUNTY CLERK 10/08/2014 04:05 PM

NYSCEF DOC. NO. 1

INDEX NO. 24741/2014E

RECEIVED NYSCEF: 10/08/2014

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

ROBERTO MARTINEZ,

Plaintiff,

- against -

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE,**

Defendant(s).

Index No.: 24741-2014E

Date Purchased:

Date Filed:

SUMMONS

Plaintiff designates Bronx County as the
place of trial. The basis of venue is the
action arose in Bronx County.

2014PE010499

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York
October 7, 2014



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
895 Sheridan Avenue
Bronx, New York 10451
(718) 588-1300

1/20/14

TO: ZACHARY CARTER, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

DETECTIVE ABDIEL ANDERSON (Shield No. 1429)
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

ROBERTO MARTINEZ,

Plaintiff,

INDEX NO.:

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE**

VERIFIED COMPLAINT

Defendant(s).

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **ROBERTO MARTINEZ** was and is a resident of Bronx County, State of New York.

2. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

3. That at all times hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as "NYPD", was and is an agency of the defendant, CITY.

4. That on and prior to 1/20/14 and at all times hereinafter mentioned the defendant, **DETECTIVE ABDIEL ANDERSON** (Shield No. 1429), hereinafter referred to as "ANDERSON" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 1/20/14 and at all times hereinafter mentioned the defendant, **POLICE OFFICER JOHN DOE**, hereinafter referred to as "DOE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent,

servant and employee of the CITY and NYPD.

6. That on and prior to 1/20/14 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 1/20/14, at approximately 11:00 a.m., several police officers including but not limited to ANDERSON, DOE and ROE were on duty and in the vicinity of 972 Leggett Avenue, County of Bronx, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 1/20/14, at approximately 11:00 a.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants ANDERSON, DOE and ROE were all assigned to Bronx Narcotics.

10. That on and prior to 1/20/14 ANDERSON, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 1/20/14, at approximately 11:00 a.m., and all relevant times herein after, ANDERSON, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 1/20/14, at approximately, 11:00 a.m., Plaintiff **ROBERTO MARTINEZ** was lawfully in the vicinity of 972 Leggett Avenue, County of Bronx, State of New York and doing

nothing illegal, improper or acting suspicious in anyway.

13. That on 1/20/14, at approximately, 11:00 a.m., in the vicinity of 972 Leggett Avenue, County of Bronx, State of New York, ANDERSON, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **ROBERTO MARTINEZ** for no reason and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

14. Upon information and belief ANDERSON, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **ROBERTO MARTINEZ**.

15. Upon information and belief, Plaintiff **ROBERTO MARTINEZ** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

16. That Plaintiff **ROBERTO MARTINEZ** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime.

17. Thereafter, Plaintiff **ROBERTO MARTINEZ** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

18. Plaintiff **ROBERTO MARTINEZ** sustained physical and emotional pain and injuries as a result of this incident.

19. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **ROBERTO MARTINEZ** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances

under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

20. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted. 3

21. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with. 1/12

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ROBERTO MARTINEZ

22. Plaintiff **ROBERTO MARTINEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 21 with the same force and effect as if fully set forth at length herein. S

23. That on or about 1/20/14, at approximately 11:00 a.m., the Plaintiff **ROBERTO MARTINEZ** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and/or employees, and in particular, by ANDERSON, DOE and ROE. D

24. That on or about 1/20/14, at approximately 11:00 a.m., the Plaintiff **ROBERTO MARTINEZ** while lawfully in the vicinity of 972 Leggett Avenue, County of Bronx, City and State

of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, ANDERSON, DOE and ROE of having committed a crime.

25. That on or about 1/20/14, and upon arresting the Plaintiff **ROBERTO MARTINEZ** and depriving him of his liberty, CITY, NYPD, ANDERSON, DOE and ROE took the Plaintiff **ROBERTO MARTINEZ** to a police station in the County of Bronx and entered him on the records as under arrest.

26. That on or about 1/20/14, the CITY, NYPD, ANDERSON, DOE and ROE further caused Plaintiff **ROBERTO MARTINEZ** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

27. That on or about 1/20/14 Plaintiff **ROBERTO MARTINEZ** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

28. That at all times hereinafter mentioned the actions of CITY, NYPD, ANDERSON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

29. That by reason of the foregoing, Plaintiff **ROBERTO MARTINEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ROBERTO MARTINEZ

30. Plaintiff **ROBERTO MARTINEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 29 with the same force and effect as if fully set forth

at length herein.

31. That on or about 1/20/14, a criminal complaint was issued by the CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That on or about 1/20/14 a criminal action against Plaintiff **ROBERTO MARTINEZ** was commenced by CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That solely as a result of the aforesaid, the Plaintiff **ROBERTO MARTINEZ'S** life was interfered with.

34. That the criminal action against Plaintiff **ROBERTO MARTINEZ** was continued for an extended period of time by defendants with malice and bad faith.

35. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **ROBERTO MARTINEZ**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That the criminal action against Plaintiff **ROBERTO MARTINEZ** was terminated favorably by dismissal.

37. That the actions of CITY, NYPD, ANDERSON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

38. That by reason of the foregoing, Plaintiff **ROBERTO MARTINEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ROBERTO MARTINEZ

39. Plaintiff **ROBERTO MARTINEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 38 with the same force and effect as if fully set forth at length herein.

40. That on or about 1/20/14, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **ROBERTO MARTINEZ** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, ANDERSON, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That on or about 1/20/14 CITY, NYPD, ANDERSON, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, ANDERSON, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **ROBERTO MARTINEZ** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **ROBERTO MARTINEZ** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **ROBERTO MARTINEZ** and caused such battery in and about his head, neck, back, body and limbs.

42. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **ROBERTO MARTINEZ** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and

that he was otherwise damaged.

43. That as a result of the aforesaid assault and battery the Plaintiff **ROBERTO MARTINEZ** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

44. That at all times hereinafter mentioned the actions of CITY, NYPD, ANDERSON, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff **ROBERTO MARTINEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ROBERTO MARTINEZ**

46. Plaintiff **ROBERTO MARTINEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 45 with the same force and effect as if fully set forth at length herein.

47. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to ANDERSON, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring,

retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff **ROBERTO MARTINEZ** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

52. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

53. That by reason of the foregoing, Plaintiff **ROBERTO MARTINEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ROBERTO MARTINEZ

54. Plaintiff **ROBERTO MARTINEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **ROBERTO MARTINEZ**, police officers including but not limited to ANDERSON, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **ROBERTO MARTINEZ**, police officers including but not limited to ANDERSON, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **ROBERTO MARTINEZ** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **ROBERTO MARTINEZ** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

58. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff **ROBERTO MARTINEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ROBERTO MARTINEZ

60. Plaintiff **ROBERTO MARTINEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 59 with the same force and effect as if fully set forth at length herein. 8

61. That on 1/20/14, at approximately 11:00 a.m., within the vicinity of 972 Leggett Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to ANDERSON, DOE and ROE who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York. OK

62. That Plaintiff **ROBERTO MARTINEZ** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason. D

63. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk"). ↓

64. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the

use of physical force.

65. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

66. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

67. It is alleged herein that Plaintiff **ROBERTO MARTINEZ** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **ROBERTO MARTINEZ**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals - relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

68. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was

patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the "substance" recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to "get on the wall" and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession

of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the

manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police

officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

69. As is evidence from the above, Plaintiff **ROBERTO MARTINEZ'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, strip searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

70. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-

ups, fraud, perjury, deceit and malfeasance.

71. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

72. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

73. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhly Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a

Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

74. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

75. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **ROBERTO MARTINEZ**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

76. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of

the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

77. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

78. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

79. That by reason of the foregoing, Plaintiff **ROBERTO MARTINEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ROBERTO MARTINEZ

80. Plaintiff **ROBERTO MARTINEZ** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 79 with the same force and effect as if fully set forth at length herein.

81. At all times mentioned herein and above, defendants CITY and NYPD employed **ANDERSON, DOE and ROE** as police officers and named defendants were acting under color of

law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

82. Plaintiff **ROBERTO MARTINEZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

83. That on or about 1/20/14, defendants CITY, NYPD, ANDERSON, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **ROBERTO MARTINEZ**, did search, seize, assault and commit a battery and grab the Plaintiff **ROBERTO MARTINEZ** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **ROBERTO MARTINEZ** during the arrest process in an unlawful and excessive manner. Plaintiff **ROBERTO MARTINEZ** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

84. The above actions of defendants CITY, NYPD, ANDERSON, DOE and ROE and ROE resulted in Plaintiff **ROBERTO MARTINEZ** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

85. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding

the protection of the constitutional rights of citizens.

86. Defendants CITY, NYPD, ANDERSON, DOE and ROE subjected Plaintiff **ROBERTO MARTINEZ** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **ROBERTO MARTINEZ'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution. |

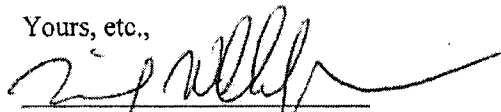
87. The direct and proximate result of the defendants CITY, NYPD, ANDERSON, DOE and ROE acts are that Plaintiff **ROBERTO MARTINEZ** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

88. That by reason of the foregoing, Plaintiff **ROBERTO MARTINEZ** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **ROBERTO MARTINEZ** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Bronx, New York
 October 7, 2014

Yours, etc.,



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
895 Sheridan Avenue
Bronx, New York 10451
(718) 588-1300

VERIFICATION

STATE OF NEW YORK }
 }
COUNTY OF BRONX } SS:

Robert Martinez, being duly sworn, say:

1. I am the plaintiff in the within action.
2. I have read the attached Summons and Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true.

Robert Martinez

Sworn to before me this

7 day of October 2014

NEIL WOLLERSTEIN
Notary Public, State of New York
No. 02W06104776

Qualified in New York County
Commission Expires February 2, 2018

Neil Wollerstein

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERTO MARTINEZ,

Plaintiff,

-- against --

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE,**

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
895 Sheridan Avenue
Bronx, New York 10451
(718) 588-1300



ZACHARY W. CARTER
Corporation Counsel

**The City of New York
LAW DEPARTMENT**
100 CHURCH STREET
NEW YORK, NEW YORK 10007

November 3, 2014

ROBERTO MARTINEZ
by mailing a copy to his/her/their attorney(s),
NEIL WOLLERSTEIN
at 895 SHERIDAN AVE
BRONX, NY 10451

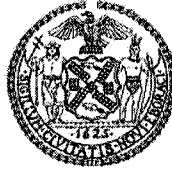
Re: ROBERTO MARTINEZ v. CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE ABDIEL ANDERSON, POLICE
OFFICER JOHN DOE AND POLICE OFFICER JOHN ROE
Law Dept. 2014-037229 Bronx County Index # 24741/2014E

Dear Sirs:

This office does not consent to the Filing By Electronic Means (NYSCEF) for this
action.

Sincerely yours,


Assistant Corporation Counsel
GIANNA M. FAMULARI



ZACHARY W. CARTER
Corporation Counsel

**The City of New York
LAW DEPARTMENT**
100 CHURCH STREET
NEW YORK, NEW YORK 10007

Dear Counsel:

If you would like to have this case considered for possible early settlement by the Early Intervention Unit of the Tort Division, the following items (as applicable) should be forwarded to the attention of Ms. Diane Studdard, New York City Law Department, Tort Division, 100 Church Street, New York, New York 10007:

IN ALL CASES COPIES OF THE FOLLOWING ITEMS MUST BE PROVIDED:

1. Notice of Claim.
2. 50-h transcript.
3. Verified Complaint and Answer.
4. Aided Card, if prepared.
5. UF18 - City Involved Accident Report, if prepared.
6. All medical and hospital records, including ambulance call report, first treatment, emergency room record, operative and radiology reports, treating physician(s) reports, physical therapy records, etc.
7. Photographs (duplicates, color or laser copies preferred) of the location and of injuries, if scarring is claimed.
8. Proof of any special damages claimed.
9. Any other item(s) that you believe pertinent to an early resolution of your case.
10. Social Security number and any other Medicare information – see attached notice

ALLEGED TRIP AND FALL ON A SIDEWALK OR ROADWAY

1. Most recently dated Big Apple map.
2. Permits, cut forms, contracts, if available.
3. Any other documents that the plaintiff will rely upon to prove prior written notice, if not a Big Apple Map.

MOTOR VEHICLE ACCIDENT CASES

1. Police Accident Report.
2. MV-104 filed by or on behalf of the plaintiff.
3. Agency incident/accident report, if prepared.
4. DMV hearing transcript, if available.
5. Photographs of the vehicle, before and after the accident.
6. Available insurance coverage for the vehicle involved in the accident.
7. Plaintiff's No-fault records.
8. Repair bills and/or estimates.

9. If the accident involves a traffic light or stop sign, any documentation that the plaintiff will rely upon to prove notice.

ALLEGED PREMISES LIABILITY

1. Copies of any documents that plaintiff will rely on to establish ownership of the premises.
2. Prior complaints.
3. Accident/incident reports.

BOARD/DEPARTMENT OF EDUCATION CASES

1. Accident and/or incident report and attachments, if any.
2. Custodian reports.
3. Teacher(s) statements/reports.
4. Witness statements.
5. Copies of any documents filed with or against any governmental agency concerning the incident.

ALLEGED POLICE MISCONDUCT

1. Any police reports in your possession.
2. Arrest report and photographs.
3. Certified copy of the disposition of any criminal proceedings.
4. Witness statements.
5. Complaint report and any follow-up reports.
6. If entitlement to reimbursement of legal fees is claimed, copies of any bills incurred.

ALLEGED PROPERTY DAMAGE

1. Photographs (duplicates, color or laser copies preferred) depicting the items alleged to have been damaged, prior and subsequent to the damage.
2. Original purchase receipts, cancelled checks, and/or charge slips for the items alleged to have been damaged.
3. Appraisals, warranties, etc.
4. Copies of any insurance agreements pertaining to property damages and/or loss.

Please be advised that all of the above materials must be sent in order to have your case considered for possible early settlement - incomplete packages cannot be considered. Within two to three months after receipt of the above materials, you will be contacted to discuss the case further. ***Counsel appearing at the conference must have settlement authority and be prepared to establish liability and damages.*** If you have any questions regarding this procedure, you may contact Ms. Diane Studdard at (212) 356-3283.

Very truly yours,

Diane Studdard



**The City of New York
LAW DEPARTMENT
Office of the Corporation Counsel
Tort Division
Medicare Compliance and Recovery**

Medicare@law.nyc.gov

ZACHARY W. CARTER
Corporation Counsel

**Unit
100 Church Street, 4th Floor
New York, NY 10007-2668**

October 30, 2014

NEIL WOLLERSTEIN
895 SHERIDAN AVE
BRONX, NY 10451

Case Name: ROBERTO MARTINEZ v.
CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DETECTIVE ABDIEL
ANDERSON, POLICE OFFICER JOHN DOE
AND POLICE OFFICER JOHN ROE
Index: 24741/2014E
Law Department No: 2014-037229

Dear Counselor:

It is important that you provide us with certain personal identifying information about each plaintiff, that we need in order to identify whether each of your clients is a Medicare beneficiary, via an electronic query to the Center for Medicare and Medicaid Services (CMS). Specifically, we need each plaintiff's date of birth and Social Security number or Health Insurance Claim Number (HICN), also known as the Medicare number.

Although this disclosure is voluntary, federal law mandates that self-insured liability entities, such as the City of New York, report settlements with Medicare recipients to CMS and ensure that Medicare's financial interests in obtaining reimbursement from plaintiffs are fully protected. There is a \$1,000-per-day penalty assessed against any insurer who fails to report a settlement to Medicare and the insurer is obligated to ascertain whether a plaintiff is, in fact, a Medicare recipient. To conclusively determine whether your client is a Medicare beneficiary, your client's name, gender, date of birth, and social security number must be submitted to CMS's automatic query system. *See* Section 111 of the Medicare & Medicaid SCHIP Extension Act of 2007, 42 U.S.C. §1395y. Thus, courts have held that plaintiff's production of his or her Social Security Number is required. *Smith v. Sound Breeze of Groton Condo. Assoc.*, 2011 Conn. Super. LEXIS 194 (Conn. Super. Ct. February 3, 2011); *Hackley v. Garofano*, 2010 Conn. Super LEXIS 1669 (Conn. Super. Ct. July 1, 2010). *See also*, *Seger v. Tank Connection, LLC*, 2010 U.S. Dist

LEXIS 49013 (D. Neb. June 1, 2010) ("Collection of the SSNs for the purposes of coordinating benefits with Medicare is a required, legitimate and necessary use of the SSN under federal law and is thus permitted by HIPAA").

If you know for a fact that your client presently receives Medicare, your firm must immediately (1) notify Medicare of the pending lawsuit; (2) provide the Law Department with plaintiff's Medicare identification number and/or social security number; (3) obtain conditional and final payment information from Medicare; (4) if future medical care is anticipated, determine the amount to be set aside by plaintiff for payment of future medical costs; and (5) provide copies of any correspondence you have received from Medicare.

Please note that, as plaintiff's counsel, you also have obligations and liabilities under federal law in the event your client is or may become a Medicare recipient. Medicare may be entitled to reimbursement out of any settlement proceeds for any payments it has made for treatment of these injuries, and may have a claim directly against you for unreimbursed sums.

Where the Government is obliged to pay for the medical care of a person who is injured "under circumstances creating tort liability upon some third person . . . to pay damages therefore," the Government has the right to recover the reasonable value of the care it provides. *See* The Medical Care Recovery Act ("MCRA"), 42 U.S.C. § 2651. 3. Medicare may make "conditional payment" for medical care and then recover the payments made or "reasonably expected to be made" from any of the following: Group health plans, workers compensation programs, liability insurers, self-insurers, plaintiffs, plaintiffs' attorneys, and medical providers. *See* Medicare Secondary Payer Act 42 U.S.C. § 1395y(b). Pursuant to the Medicare Secondary Payer Act, plaintiff's counsel and the City of New York have a duty to comply with reporting and/or recovery provisions, and Federal law imposes potential liability against plaintiff's counsel and the City of New York for non-compliance. *See* 42 CFR 411.37; 42 CFR 411.24(c); 411.26(a)-(b). A failure to take Medicare's interests into consideration can result in double damages or a loss of plaintiff's Medicare benefits. An insurer's failure to report any settlement results in a \$1,000-a-day fine to the insurer.

The right of a defendant to withhold payment pending plaintiff's resolution of any potential Medicare claims or liens is firmly established. Years ago, the Appellate Division, Second Department held, in *Liss v. Brigham Park Coop. Apts.*, 264 A.D.2d 717 (2d Dep't 1999), that a plaintiff's general release and stipulation of settlement are defective if tendered without a release of plaintiff's Medicare lien. Specifically, the Court noted that, because the Federal government has a right of action directly against the defendant for recovery of its lien, it was "incumbent upon plaintiff to resolve the lien and give the defendant a release." 264 A.D.2d at 718.

Recently, in *Torres v. Hirsch Park, LLC*, 91 AD.3d 942 (2nd Dep't 2012), the Court reaffirmed this principle. The Second Department stated: "The general release and stipulation of settlement tendered by plaintiff were defective because they failed to include any provisions releasing and holding the defendant harmless from potential Medicare and Medicaid liens or acknowledging that any such liens would be satisfied from the settlement proceeds." (Citations omitted). The Court also recognized the burden that the defendant faced regarding compliance with federal law, observing that the plaintiff must provide information "necessary for the defendant to comply with its statutory duty to report the identity of a claimant who is entitled to Medicare benefits (see 42 USC 1395y[b][8]) and to determine the existence of potential subrogation claims [under federal law]." *Id.* at 943 (citations omitted).

Echoing the Second Department's rationale, in *Panella v. CBS Broadcasting, Inc.*, 2011 N.Y. Misc. LEXIS 4271. (Sup. Ct. N.Y. Cty. September 1, 2011), the Supreme Court held that, for

purposes of payment, CPLR 5003-a "does not become operative until a duly executed release is tendered by the settling plaintiff to the settling defendant, and an unpaid lien renders a general release not 'duly executed.'" Id. at *6. The Panella court cited Liss as governing precedent for this holding. The Court further concluded that the settling defendant "should not be penalized for failing to disburse settlement funds within twenty-one days of the...release, when it had spent months trying to get information from the plaintiffs as to any Medicare liens they may have against them. [The settling defendant] was taking the steps necessary to protect itself from liability for any potential failure by the plaintiffs to pay outstanding Medicare liens..." Id. at *7. Indeed, the Court did not consider the action "settled within the purview of CPLR 5003-a(a) until the Medicare issues were resolved by the CMS letter." Id.

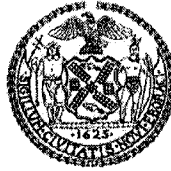
Other jurisdictions have similarly held that a settling defendant has a legitimate right to protect itself from liability to Medicare and is thus acting in good faith by requiring a settling plaintiff, who is a Medicare recipient, to provide proof as to the existence or non-existence of a Medicare claim or lien. See, e.g., Wilson v. State Farm Mutual Automobile Ins. Co., 795 F.Supp.2d 604, at 607-608 (W.D. Ky. 2011) (defendant insurer "had sound reasons to try to determine the amount of [the lien] and protect itself from overpayment" and that, given the statutory obligations to Medicare, "that to comply with federal law and protect its own legitimate interests against overpayment [of the plaintiff] is reasonable and certainly is not in bad faith").

Please note it is possible that, in certain cases, a Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. §1395y (b) and 42 C.F.R. §§411.22 through 411.26.

Accordingly, if your client is a Medicare recipient, your firm should immediately notify Medicare of this pending lawsuit and seek information on conditional payments (including anticipated future payments) for which Medicare will expect reimbursement. Information and Contact instructions for Coordination of Benefits (COBC) can be found at www.cms.gov/ or by phone: 800-999-1118. In addition, plaintiff can access his/her Medicare benefits at www.mymedicare.gov. Additional information can be found on the Medicare Secondary Payer Recovery Contractor's (MSPRC) website at www.msprc.info/.

Please further note that, as of September 30, 2011, the MSPRC has added a Self-Service Information feature to its customer service line (1-866-677-7220) that gives callers the ability to get the most up-to-date Demand and Conditional Payment amounts as well as the dates those letters were issued without having to speak with a Customer Service Representative.

PLEASE BE ADVISED THAT WE CANNOT FINALIZE ANY SETTLEMENT WITH A CURRENT MEDICARE RECIPIENT WITHOUT FIRST RESOLVING MEDICARE'S CLAIM.



ZACHARY W. CARTER
Corporation Counsel

The City of New York
LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NEW YORK 10007

October 30, 2014

NEIL WOLLERSTEIN
895 SHERIDAN AVE
BRONX, NY 10451

Re: ROBERTO MARTINEZ V CITY OF NEW YORK, ET AL.
County: Bronx Ct. Index No.: 24741/2014E
Our File No.: 2014-037229

Dear Counselors:

This office is unable to evaluate and review your client's claims against THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT, ("CITY") without duly executed authorizations permitting the CITY to review records pertaining to your client's arrest, incarceration, and or criminal proceedings. A review of the file in the above named action reveals that you have yet to provide said authorizations. In order to facilitate the discovery process, please provide this office with the following:

- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy the records, transcripts and certificates of disposition of any criminal proceedings concerning the claims alleged in the complaint;
- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy all records, created by, or in the possession of, the New York City Police Department, relating to the claims alleged in the complaint; and
- Duly executed authorization permitting the Office of the Corporation Counsel to examine and copy all records, created by, or in the possession of, the District Attorney's Office, relating to the claims alleged in the complaint.

Enclosed is a blank authorizations for your convenience. Please copy and have your client complete a separate original authorization for the New York City Police Department, District Attorney's Office, and the unsealing of related criminal court records and return them to the New York City Law Department, 100 Church Street, New York, NY 10007 at your earliest convenience. NOTE: - For cases with more than one plaintiff please copy the blank authorization supplied herewith and return a separate set of completed authorizations *for each plaintiff* alleging other than only loss of consortium claims. Thank you for your anticipated cooperation.

Very truly yours,

ZACHARY W. CARTER
Corporation Counsel

**CONSENT AND AUTHORIZATION FOR RELEASE OF RECORDS SEALED BY
LAW, INCLUDING RECORDS SEALED PURSUANT TO CRIMINAL PROCEDURE
LAW § 160.50**

Whereas, I, _____, residing at _____, date of birth: _____, and Social Security # _____, NYSID # _____, having caused a notice of claim to be filed or commencing an action/lawsuit against THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT, , demanding money damages for false arrest, false imprisonment, malicious prosecution, assault and battery, and/or other allegations, I hereby waive my statutory rights, for purposes of this claim/action/lawsuit, to keep sealed the records of my arrest on or about January 29, 2014 and prosecution, including all records maintained by law enforcement agencies, criminal courts, and/or district attorney's office. If my case proceeded in the criminal courts, the docket # was _____.

Whereas, it is necessary for the above named defendant(s) to have access to the aforementioned records of my arrest and any related criminal proceedings and incarceration in order to evaluate and review my claims, and prepare its defense thereto, I hereby authorize any and all governmental agencies, bodies and employees having custody of such records to release such records to the Office of the Comptroller or the Office of the Corporation Counsel of the City of New York, or its authorized agent or employee. I specifically authorize the New York City Police Department; Bronx County District Attorney's Office; New York State Supreme Court, Bronx County, Criminal Term; and New York City Criminal Court to disclose any and all records in their possession relating to the aforementioned arrest/prosecution and docket number to the Office of the Corporation Counsel of the City of New York, or its authorized agent or employee.

Plaintiff/Claimant

Sworn to before me this _____ day of _____, 20____

NOTARY PUBLIC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
ROBERTO MARTINEZ,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).
-----x

ANSWER

Index #: 24741/2014E

Law Dept. #: 2014-037229

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT, by ZACHARY W. CARTER, Corporation
Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 12-16, 18, 23-29, 31-35, 37, 38, 40-45, 47-53, 55-59, 62-79, 82-88, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 4-11, 17, 21, 36, 61, 81, inclusive.
3. Deny the allegations set forth in paragraph(s) 19, 20, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, inclusive, except that the City of New York is a municipal corporation which maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 22, 30, 39, 46, 54, 60, 80, inclusive, except as otherwise pleaded herein.

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

Index #: 24741/2014E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERTO MARTINEZ,

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ABDIEL ANDERSON, POLICE OFFICER JOHN DOE AND
POLICE OFFICER JOHN ROE,

Defendant(s).

**COMBINED DEMAND FOR
BILL OF PARTICULARS & DISCOVERY**

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF NEW
YORK S/H/A NEW YORK CITY POLICE DEPARTMENT, 100 Church
Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)
(212) 356-2680/2683

All Other Matters (by county of venue)
(718) 590-3487 (EBT's-3971) (Bronx)
(718) 222-2000 (EBT's-2069) (Kings)
(212) 788-0646 (EBT's-0628) (New York)
(718) 206-4731 (EBT's (718) 206-4703) (Queens)
(718) 447-5983 (EBT's-5985) (Richmond)
(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #:

2014-037229

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
ROBERTO MARTINEZ,

Plaintiff(s),

**COMBINED DEMAND FOR
VERIFIED BILL OF
PARTICULARS & DISCOVERY**

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).
----- x

DEMAND FOR VERIFIED BILL OF PARTICULARS

PLEASE TAKE NOTICE that pursuant to CPLR 3041, plaintiff(s) is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. The exact date and time of the act or occurrence.
2. The specific location of the act or occurrence with reference to addresses, landmarks, or other identifying points of reference, including the direction and distance therefrom. If the occurrence took place inside a premise, state specifically the location within the premise and also include the block and lot of the premises.
3. State the injuries claimed, if any.
4. State those injuries claimed to be permanent.
5. If applicable, set forth the length of time it is alleged the plaintiff(s) was confined to:
 - (a) Hospital(s);
 - (b) Bed;
 - (c) House.
6. If applicable, set forth the amount claimed as special damages for:
 - (a) Physician(s) services;
 - (b) Nurses services;
 - (c) Hospital expenses;
 - (d) Drugs and medical supplies;
 - (e) X-rays and diagnostic tests.

For each of the foregoing elements of damages please state the name and address(es) of the provider(s) and the dates of treatment. If any of the foregoing elements of damages have been repaid to the plaintiff(s) or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff(s).

7. If applicable, state the total amount of all other special damages not specified in items above; and please state the

- (a) name and address of each service provider;
 - (b) each date of the service;
 - (c) amount of the expense for each provider;
 - (d) amount of any expense paid by a third-party (including any payment made to reimburse plaintiff);
 - (e) name and address of the third-party paying any expense; and
 - (f) amount of any unreimbursed expense paid by plaintiff(s) personally to each provider.
8. State the occupation of plaintiff(s) at the time of the incident; and please state the:
- (a) name and address of any employer for 5 years prior to alleged incident and up to the time of trial;
 - (b) length of time totally disabled from work;
 - (c) length of time partially disabled from work;
 - (d) amount claimed for lost earnings, if any;
 - i. if a loss of earnings claim is alleged, please state the yearly gross earnings for each year during 5 years prior to alleged incident and up to the time of trial; and
 - (e) number of days absent from work as a result of injuries sustained from the incident.
9. State the (a) name and address of any school attended by plaintiff(s) for 5 years prior to alleged incident and up to the time of trial; and (b) the number of days lost from school as a result of injuries sustained from incident.
10. State the home address of plaintiff(s) for a period of 5 years prior to the alleged incident to the present.
11. State any other name used by plaintiff(s) and the time period when the name was used.
12. State the date of birth and social security number of plaintiff(s) (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to determine whether plaintiff(s) is (are) Medicaid recipient(s) for purposes of determining whether a Medicaid lien may attach to any judgment or settlement obtained against the defendant(s).
13. State whether plaintiff(s) is (are) Medicare recipient(s). If plaintiff is or was a Medicare recipient please provide their Medicare identification number and social security number (disclosure of social security number is voluntary). If a social security number is disclosed, it will be used by defendant(s) to verify that plaintiff(s) is (are) Medicare recipient(s) for purposes of defendant(s) meeting its (their) Medicare reporting obligations.
14. If plaintiff(s) has ever been convicted of a crime (including any guilty plea), please state (a) the NYSID number of plaintiff; (b) the dates of every conviction; (c) whether the conviction was state or federal; and (d) the county where each conviction occurred.
15. If the complaint alleges loss of services, set forth the pecuniary loss, if any, alleged in the complaint. Enumerate the damages for:
- (a) Loss of services;
 - (b) Consortium;
 - (c) Other expenses.
16. State those injuries arising from the use or operation of a motor vehicle which are claimed to be serious, as defined in Insurance Law § 5102 (d), if any.
17. If property damage is claimed, please state (a) all property damaged; (b) the fair market value of each item at the time it was damaged; (c) the cost of repairing each item; (d) the cost of replacing each item; (e) the date each item was acquired; (f) the purchase cost of each item; (g) the amount(s) provided by a third-party to reimburse damage; (h) the name and address of any third-party which reimbursed damage; and (i) amount of any unreimbursed payment made by plaintiff(s) to replace or repair a damaged item.
18. State the manner in which it is claimed the accident occurred.

19. State separately the acts or omissions constituting the alleged negligence of each of the answering defendant(s), if any.

20. State separately the acts of each of the answering defendant(s) constituting the intentional wrongs claimed, if any.

21. State the names of the employee(s) or agents of the answering defendant(s) who are alleged to have committed the acts set forth in the items above.

22. Describe any alleged dangerous and defective condition and or the object or instrumentality complained of, as well as the nature of the condition alleged.

23. State whether any repairs were made prior to the happening of the alleged accident.

24. If it is alleged that repairs were made prior to the happening of the accident, state when, where, and by whom, the repairs were made.

25. State whether actual or constructive notice is claimed or whether it is alleged that defendant created the condition complained of.

26. If actual notice is claimed, then set forth the following:

(a) The names of the employees, agents and/or servants of the defendant(s) to whom it will be alleged said actual notice was given;

(b) By whom will it be claimed that said actual notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said actual notice was given.

27. If constructive notice is claimed, state the length of time said condition is alleged to have existed prior to the happening of the alleged occurrence.

28. If prior written notice is claimed, specify the nature of such notice.

29. If prior written notice is claimed, then set forth the following:

(a) The name(s) of the entity, agency, employees, agents and/or servants of the defendant(s) to whom it will be alleged said prior written notice was given;

(b) By whom will it be claimed that said prior written notice was given on each occasion aforesaid;

(c) The date or dates of each said notice;

(d) The place said notice was given.

30. In any action where plaintiff(s) claim the violation of any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes, ordinances, rules or regulations alleged to have been violated by the answering defendant(s).

31. If applicable, describe in what respects defendant(s) failed to provide plaintiff(s) with a safe place to work.

32. If applicable, state whether plaintiff(s) will allege that this defendant(s) was a party to a contract. If yes;

(a) State the parties to the contract;

(b) State the contract number.

33. If applicable, set forth each and every item of construction, excavation or demolition work which the plaintiff(s) will allege was not so constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate safety; setting forth the manner in which the construction, shoring, equipping, guarding, arranging, operating and/or conducting of the construction, excavating, or demolition work is alleged to have caused the plaintiff(s) alleged injury.

34. If applicable, state whether the plaintiff(s) will allege that this defendant(s) exercised control over the work being performed at the job site. If yes, state the nature and extent of the control allegedly exercised and the exact manner in which said control was exercised.

35. If applicable, state those injuries claimed to be "grave", as defined in the Workers' Compensation Law § 11.

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges defamation, the following items are additionally demanded:

36. Whether the alleged defamatory statement was communicated orally or in a writing.
37. With respect to each of the answering defendant(s), the particular words complained of and allegedly communicated.
38. The name(s) and address(es) of any person(s) it is alleged heard or received the defamatory statement(s).
39. If it is alleged that the defamatory statement(s) were communicated in a writing, set forth the date(s), nature, and content of the writing.
40. If it is alleged that any defamatory statement was published, set forth the date(s), nature and name of the media or publication and each republication of the alleged defamatory statement.
41. The circumstances, acts, and/or omissions which evince defendant(s) knowledge of the falsity, or reckless disregard of the truth, or malice, with respect to the statement(s) allegedly made.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges police misconduct, the following items are additionally demanded:

42. State the criminal court file and docket number of the criminal proceeding.
43. State the (a) the specific charges; (b) the disposition of each charge; and (c) the date of said disposition.
44. State the date and time taken into custody.
45. State the date of arraignment.
46. State the date and time released from incarceration.
47. State the name, address, and phone number of attorney(s) who represented plaintiff(s) in the criminal proceedings.
48. State the amount claimed for legal fees, if any.
49. State the NYSID number of plaintiff(s).
50. For each criminal proceeding, including arraignment, please state the (a) the type of proceeding; (b) the date(s) of the proceeding; (c) the name of reporter who transcribed the proceeding; and (d) the name of Judge who presided over the proceeding.

ALLEGED EXPOSURE TO LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) allege damages as a result of exposure to lead-based paint, the following items are additionally demanded:

51. The day, month, and year of initial exposure;
52. The day, month and year when exposure terminated;
53. The address(es), including apartment numbers, of every premises where it is alleged that plaintiff(s) were exposed to lead-based paint;
54. The highest recorded blood lead level for plaintiff(s) and the date of the diagnosis;
55. The date of the initial diagnosis;
56. Whether it is claimed that plaintiff(s) sustained any cognitive injuries or learning disabilities as a result of any alleged exposure and if so, state the nature of the disability, when any such disability was diagnosed, the school and current grade level of plaintiff(s) and whether plaintiff(s) have been placed in any special classes.

ALLEGED ACTION FOR WRONGFUL DEATH

Where applicable, in addition to the foregoing, if plaintiff(s) allege wrongful death, the following items are additionally demanded:

57. State the amount claimed as pecuniary loss, specifying the loss of parental guidance by each person dependant upon support of the decedent.

58. State the names, addresses, ages, and relationships to the decedent of all persons to whose support it is claimed the decedent contributed.

59. State the nature and purpose of the support contributed as to each person supported, including how and when support was given.

60. State the date, place and cause of death.

61. State the length of time the decedent remained conscious of the injuries sustained.

62. State the total amounts claimed as special damages for:

- (a) Funeral and burial expenses;
- (b) Administration expenses;
- (c) Any other damages claimed.

ALLEGED NEGLIGENT EMERGENCY MEDICAL RESPONSE

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent emergency medical response, the following items are additionally demanded:

63. The exact dates and times of the claimed acts or occurrences.

64. The specific locations of the claimed acts and/or occurrences with reference to addresses, landmarks, or other identifying points of reference. If the claimed acts and/or occurrences took place inside a premise, state specifically the location within the premise and/or the department(s), as applicable, of said premises.

65. The specific time when the need for medical attention was first noticed by the plaintiff in distress, or by another person.

66. If a call for emergency assistance was made, indicate:

(a) the time at which the call was placed.
(b) the person who placed the call and, if other than the patient, his or her relationship to the patient.

(c) the description or report of injury or emergency given.

(d) if more than one call was made to 911.

(e) what the caller was told by the operator.

67. If more than one call was made to 911, indicate:

(a) the total number of calls made to 911.

(b) the time of each respective subsequent call,

(c) the person or people who made each respective subsequent call (if different from the first call).

(d) if the description of the injury or emergency changed after the first call to 911, indicate what the change was, why the description changed, when the change in condition was first noticed prior to it being reported to 911, and when the change was reported to 911

(e) what the caller was told by the operator during each respective call.

68. Indicate if 911 had been contacted earlier in the day of the incident for the same or similar condition. If so, indicate the person or persons who made the call, and when they made it. Describe what the person or persons were told by the operator.

69. Indicate what time emergency personnel first arrived. Also indicate, if known, the respective names and ranks of emergency personnel who arrived on the scene. If known, indicate if the personnel were from the FDNY or the NYPD. If the

personnel were not from either of those two agencies, identify, if known, the agency or hospital the personnel were from.

70. Indicate, if known, what time any additional and/or subsequent emergency personnel arrived after the initial emergency personnel. Indicate if such additional personnel were from the FDNY or the NYPD. If the additional personnel were not from those two agencies, identify the agency or agencies the personnel were from. Indicate the names and ranks of any additional emergency personnel who arrived. Describe any actions taken, and treatment provided by additional emergency personnel on-scene, or, if applicable, en route to a hospital.
71. State whether a claim is made that the answering defendant ignored or misdiagnosed complaints, signs, or symptoms of the patient plaintiff.
 - (a) If such a claim is made, state specifically by name or description all complaints, signs, and symptoms that the answering defendant(s) ignored or misdiagnosed.
 - (b) State what injury is claimed as the result of the answering defendant ignoring or misdiagnosing the complaints, signs, and symptoms.
 - (c) State specifically at what point during treatment the complaints, signs, and symptoms were ignored or misdiagnosed.
 - (d) State what the misdiagnosis of the complaints, signs, and symptoms was.
72. Describe the treatment, if any, provided by each of the arriving emergency personnel. Indicate, with specific time(s) and location(s):
 - (a) if the patient was intubated.
 - (i) If it is claimed that intubation was improper, describe how and why the intubation was improper, and the affect such alleged improper intubation had on the patient's condition, illness, or injury.
 - (ii) If it is claimed that the patient should have been, but was not intubated, describe the affect such alleged lack of intubation had on the patient's condition, illness, or injury.
 - (iii) If it is claimed that there was a delay in the patient being intubated, state the length of the delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.
 - (b) if an intravenous line was started.
 - (i) If it is claimed that an intravenous line was improper, describe how and why the intravenous line was improper,

and the affect such alleged improper use had on the patient's condition, illness, or injury.

(c) if a defibrillator was required or used.

- (i) If it is claimed that a defibrillator was improperly used, describe how and why the use was improper, and the affect such alleged improper use had on the patient's condition, illness, or injury.
- (ii) If it is claimed that a defibrillator should have been, but was not used, explain the affect such alleged lack of use had on the patient's condition, illness, or injury.
- (iii) If it is claimed that there was a delay in using a defibrillator, state the length of delay, and explain the affect such alleged delay had on the patient's condition, illness, or injury.

(d) if oxygen was required or given.

- (i) if it is claimed that oxygen should have been given and was not, explain why oxygenation was required, as well as the affect that the alleged lack of oxygenation had on the patient's condition, illness, or injury.
- (ii) if it is claimed that oxygenation was improper, explain how it was improper, and the affect that such alleged improper oxygenation had on the patient's condition, illness, or injury.
- (iii) if it is claimed that there was a delay in oxygenation of the patient, state the length of delay, and the affect such alleged delay had on the patient's condition, illness, or injury.

(e) if any medication was improperly administered, contraindicated, administered in an improper dosage or improper manner.

- (i) State the name and description of each drug or medication improperly administered. Describe the manner in which the drug or medication was improperly administered. State the injury claimed as a result of the improperly administered drug or medication. State specifically at what point the drugs were administered improperly.
- (ii) State the name and description of each drug or medication administered in an improper dosage. Indicate what the improper dosage was. State the injury claimed as a result of the improper dosage. State specifically at what point during treatment the drugs were administered in an improper dosage.

- (iii) State the name and description of each drug or medication claimed to be contraindicated. State in what way it is claimed that each such drug or medication was contraindicated. State the injuries claimed as a result of the administering of the contraindicated drug or medication. State specifically at what point during treatment the contraindicated drug or medication was administered.
- 73. Indicate if the plaintiff was transported to a hospital. Specify who transported the plaintiff to the hospital. Indicate if the plaintiff requested to be taken to a specific hospital. Identify the hospital to which the plaintiff was taken. Indicate what time the plaintiff was transported from the scene to the hospital and with whom if anyone she was accompanied by.
- 74. If it is claimed that emergency personnel lacked equipment to adequately provide aid, describe the equipment alleged to have been missing, and why such equipment is believed to have been missing. Describe how the alleged lack of equipment affected the patient's condition, injury, or illness.
- 75. State whether a claim is made as to defective equipment.
 - (a) If such a claim is made, identify the equipment and state the nature of the defect.
 - (b) If notice of such a defect is a prerequisite to liability, state whether actual or constructive notice is claimed.
 - (c) If constructive notice is claimed, state how long the condition existed.
- 76. State separately the acts or omissions constituting the alleged negligence and/or medical malpractice of each of the named defendants.
- 77. State the manner in which it is claimed the alleged injury arose.
- 78. State separately the acts of each of the named defendants constituting the intentional wrongs claimed, if any.
- 79. State the names of the employee(s) or agents of the answering defendant who are alleged to have committed the acts set forth in the paragraphs above.
- 80. If it is claimed that the answering defendant violated any statute, ordinance, rule, order, requirement or regulation, state separately and specifically all such statutes ordinances, rules or regulations alleged to have been violated by the answering defendant, as well as any statute, ordinance, rule, order, requirement or regulation claimed to have been violated by each of the named defendants.

81. State all injuries claimed as the result of the alleged negligence of the answering defendant herein, and state specifically which of the above injuries are claimed to be permanent in nature.
82. For actions other than for wrongful death, state the length of time the plaintiff was confined to each of the following by virtue of the acts or omissions of the answering defendant(s) herein.
- (a) Hospital, listing separately each period of hospitalization with the name and address of each hospital.
 - (b) Home.
 - (c) Bed.
83. Set forth the amount claimed as special damages for:
- (a) Physician(s) services;
 - (b) Nurses services;
 - (c) Hospital expenses;
 - (d) Drugs and medical supplies and/or equipment;
 - (e) X-rays and diagnostic tests;
 - (f) Rehabilitative and/or therapy services;
 - (g) Home health services;
 - (h) Any other expenses claimed.
84. For each of the foregoing elements of damages please state the name and address(es) of the provider(s), pharmacies, the dates of treatment and/or dates of use and list of prescriptions/medications filled. If any of the foregoing elements of damages have been repaid to the plaintiff or otherwise paid for by other sources, identify each type of service recompensed, the source or sources of such recompense, the amount so paid and the net amount of out of pocket expenses sustained by the plaintiff.
85. Set forth:
- (a) Occupation of plaintiff at the time of the occurrence;
 - (b) Whether plaintiff was self-employed, and, if so, state the address of her place of employment and the nature of the business or occupation in which she was engaged immediately prior to the occurrence.
 - (c) Name and address of plaintiff's employer, if any;
 - (d) Average weekly, monthly and/or annual gross earnings;
 - (e) State separately, the length of time totally and/or partially disabled;
 - (f) Amount claimed for lost earnings, if any;
 - (g) Number of days lost from work;
 - (h) Number of days lost from school;
 - (i) Name and address of school attended by plaintiff at the time of the date of accident.
86. Provide plaintiff's present residence address and plaintiff's residence address at time of the occurrence.
87. List all other names used by plaintiff.
88. List plaintiff's date of birth and social security number.

DEMAND FOR DISCOVERY & INSPECTION

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand you are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control; but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS

1. If the City of New York is a named defendant, please identify the agency(s) involved.
2. For each person you believe may have been a witness to the incident which caused an injury, state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
3. For each person you believe may have been a witness to the condition which allegedly caused an injury, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
4. For each person you believe may be a witness to an injury alleged in this lawsuit, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
5. For each expert witness whom you expect to call at trial, please state the (a) name of the expert; (b) business address of the expert; (c) qualifications of the expert; (d) curriculum vitae of the expert; (e) subject matter in reasonable detail that the expert is expected to testify; (f) substance of the facts and opinions on which each expert is expected to testify; and (g) a summary of the grounds for each opinion.
6. If any sum has been paid or promised to plaintiff(s) by any person claimed to be liable (within the meaning of § 15-108, General Obligations Law) for any of the injuries (or damages) alleged in the complaint, please set forth the name(s) and address(es) of the person(s), corporation(s), insurance company(s), or other entity(s) making such payment or promise and state the amount(s) which have been, or will be, with reasonable certainty received by plaintiff(s).
7. For each person you believe may have provided an oral or written statement about the incident, please state (a) the name of the individual(s); and (b) the address and phone number of the individual(s). If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have been a witness. This demand includes all individuals, even if employed by any of the parties.
8. Furnish a copy of each document you believe may have been prepared by the answering defendant(s) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation, including any statement made by any person identified in response to Item 6 above, and any note, memorandum or recording of any oral statement.
9. Furnish the sum and substance of any unrecorded oral statement you believe may have been given by each defendant (or employee, or former employee, of a defendant) concerning the occurrence of the injuries (or damages) alleged in the complaint, or which you intend to use for any purpose in this litigation.

10. Provide a copy of any (a) any insurance claim arising out of the incident alleged in this lawsuit; (b) any workers' compensation claim arising out of the incident alleged in this lawsuit; (c) any pension claim arising out of the incident alleged in this lawsuit; (d) any no-fault claim arising out of the incident alleged in this lawsuit; and (e) any other claim seeking redress for the incident alleged in the lawsuit.

11. Furnish a copy of any Freedom of Information Law request made to the answering defendant(s) and any response thereto, which you intend to use for any purpose in this litigation.

12. Furnish copies of any subpoenas served on any party, or any other individual or entity concerning this litigation.

13. Provide a copy of any transcript of testimony involving the incident alleged in the lawsuit (including (but not limited to) any examinations under oath, transcript or materials related to a Department of Motor Vehicle hearing, departmental hearing, and criminal proceeding).

14. Provide a signed copy of any hearing held pursuant to General Municipal Law § 50-h.

15. Please furnish a copy of each accident report, if any, made by, or on behalf of your client(s) concerning the occurrence of the injuries (or damages) alleged in the complaint.

16. Furnish a copy of any written notice, Big Apple Corporation map or other document giving notice of an allegedly defective or dangerous condition at the place where the injuries (or damages) alleged in the complaint occurred, prior to the occurrence thereof.

17. Furnish a reasonably clear copy of each photograph and or each video depicting the place where the injuries (or damages) alleged in the complaint occurred.

18. If plaintiff intends on utilizing any physical evidence at trial, please (a) provide a photograph of the physical evidence; and (b) make the physical evidence available for inspection.

19. In any action for injuries, including death, allegedly sustained by a spouse, child or other family member of a plaintiff, please furnish a copy of each marriage, birth and death certificate, as applicable.

20. In any representative action, please furnish a copy of the court order appointing the representative.

21. With respect to any earnings (or profits) claimed to have been lost as a result of the injuries (or damages) alleged in the complaint, please furnish a copy of each state and each federal income tax return including any W-2 statements, together with attachments, filed by, or on behalf of, plaintiff(s) for the year in which the said injuries (or damages) occurred and for each of the two preceding years, and for all years in which continuing losses are claimed.

22. In any action for wrongful death, please furnish a copy of the federal estate tax return filed for decedent's estate, and a copy of each state and each federal income tax return, including W-2 statements, filed by, or on behalf of the decedent for each of the two years before death.

23. Furnish a copy of each medical provider's report and medical bills, including pharmaceutical bills and bills for durable medical goods, with ICD-codes, referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **after** the occurrence of the injuries alleged in the complaint, or any treatment reasonably related thereto.

24. Furnish a copy of each medical provider's report referring to any physical, psychiatric or psychological examination of plaintiff(s) conducted **before** the occurrence of the injuries alleged in the complaint and reasonably related thereto.

25. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to (a) obtain each document referring to any treatment of plaintiff(s) (including psychological treatment) for any injury alleged in this lawsuit; and (b) speak with any medical provider which provided any treatment to plaintiff(s). This demand includes treatment which is reasonably related to any injury alleged in this lawsuit. Please utilize form located New York State Unified Court System webpage located at www.nycourts.gov.

26. In any action by or on behalf of a student, please furnish duly executed authorizations permitting the Office of the Corporation Counsel to examine and copy the school, attendance and health records of the plaintiff(s) on file at the school(s) attended at the time of the occurrence and thereafter.

27. If plaintiff received workers' compensation benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the workers' compensation file; and (b) a copy of the worker's compensation file.

28. If plaintiff received no fault benefits, please provide (a) duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain the no fault file; (b) a copy of the no fault file.

29. If plaintiff alleges economic loss, please provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records on file at the last employer.

30. State whether plaintiff is currently receiving, has applied for or is eligible for Social Security Disability payments. If plaintiff is currently receiving Social Security Disability payments, please identify when eligibility began and identify his/her SSDI number and the medical condition on which basis coverage was awarded. If plaintiff has received Social Security Disability payments at any point in the past, please identify the period or periods of time when plaintiff was eligible and identify his/her SSDI number and medical condition on which basis coverage was awarded.

31. If, in your response to the prior request, you indicated plaintiff has ever applied for or been eligible for Social Security Disability payments, please provide (a) copies of all social security disability records, including any determination and decision; and (b) a duly executed authorization (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain Social Security disability records from the Social Security Administration.

32. Identify all health care benefits, including but not limited to private health insurance carriers and public health care programs (e.g., Medicaid), plaintiff has received or which plaintiff will become eligible to receive as a result of injuries allegedly related to the subject accident/incident and provide copies of plaintiff's identification cards for all identified health care programs.

33. State whether plaintiff is or has ever been a Medicare recipient and, if so, provide plaintiff's Medicare Health Insurance Claim Number ("HICN") and a copy of his/her HICN card. If no card is available, please provide the date eligibility began. If plaintiff has received Medicare coverage at some point in the past and no HICN card is available, please identify the period or periods of time when plaintiff was eligible.

34. Furnish the name and address of the attorney(s) who have appeared in this action.

35. Furnish the names of the parties, the court, and the index number of each other action, if any, commenced by or on behalf of plaintiff(s) concerning any of the injuries (or damages) alleged in the complaint.

DEMANDS FOR COLLATERAL SOURCE INFORMATION

36. Entities that have provided payments for medical treatment. Identify by name, address and policy number, any source that has provided payments to plaintiff, or to plaintiff's spouse, domestic partner, or parent for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

37. Entities that have provided payments on account of disability. Identify by name, address and policy number, any source that has provided payments to plaintiff, by reason of plaintiff's partial or total inability to work. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

38. Entities from which plaintiff is eligible to receive medical coverage. Identify by name, address and policy number, any source from which plaintiff is eligible to receive medical coverage for the

injuries received in this accident whether or not plaintiff has actually applied for such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

39. Entities from which plaintiff is eligible to receive disability benefits. Identify any source by name, address and policy number, any source from which plaintiff would be eligible to receive payments in the event of plaintiff's partial or total inability to work, whether or not plaintiff has applied for or received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

40. Entities to which plaintiff has applied for medical benefits. Identify any source by name, address and policy number, any source to which plaintiff, or plaintiff's spouse, domestic partner, or parent, has submitted claims or applied for benefits for medical, dental, rehabilitative, custodial or psychological treatment (including medication) received by plaintiff as a result of this accident whether or not such benefits were received. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

41. Entities to which an application for disability benefits has been made. Identify any source by name, address and policy number, any entity to which an application has been made for payments by reason of partial or total inability to work, whether or not plaintiff has received such benefits. Provide Hippa-compliant authorizations and hard copies of any records in your possession for any source listed.

42. Entities to which plaintiff has paid premiums to obtain medical or disability coverage. Identify any entity by name, address and policy number to which plaintiff, or plaintiff's spouse, domestic partner, or parent paid premiums to obtain medical or disability coverage for two years prior to the incident. Provide Hippa-compliant authorizations and hard copies of any records in your possession for proof of such payment of premiums.

ALLEGED POLICE MISCONDUCT

Where applicable, in addition to the foregoing, if plaintiff(s) allege police misconduct, the following items are additionally demanded:

43. Provide duly executed authorizations (which expire upon the conclusion of this case) permitting the Office of the Corporation Counsel to obtain records pertaining to all criminal proceedings related to the incident alleged in this lawsuit. Please provide a separate authorization for each entity which maintains these records (including (but not limited to) the Office of the District Attorney, the New York City Police Department, and criminal court).

44. Provide copies of records pertaining to all criminal proceedings related to the incident alleged in the lawsuit, including (but not limited to) transcripts, certificates of disposition, police records, criminal records, District Attorney records, and photographs, including copies of any photographs of the plaintiff(s) taken by the defendant(s) at the time of the arrest.

45. If entitlement to reimbursement for legal fees is claimed, please provide copies of any bills incurred.

46. Provide the name, address, and phone number of any attorney representing plaintiff(s) concerning the criminal charges related to the incident alleged in this lawsuit.

ALLEGED PROPERTY DAMAGE

Where applicable, in addition to the foregoing, if plaintiff(s) allege property damage, the following items are additionally demanded:

47. For each item of property damaged:

(a) Photograph(s) and or videotapes depicting the items alleged to have been damaged, prior to damage;

(b) Photograph(s) and or videotapes depicting items alleged to have been damaged, subsequent to damage;

(c) Original purchase receipts, cancelled checks, and/or charge slips for items alleged to have been damaged;

(d) Appraisals, warranties, etc. pertaining to the items alleged to have been damaged.

48. True and accurate copies of any and all insurance agreements held by plaintiff on day of said incident and pertaining to property damage and/or loss.

49. True and accurate copies of any and all notices of loss or claims made on the above policies pertaining to the damage alleged in the complaint.

ALLEGED NEGLIGENT SUPERVISION

Where applicable, in addition to the foregoing, if plaintiff(s) allege negligent supervision, the following items are additionally demanded:

50. For every individual who allegedly failed to provide adequate supervision, please state (a) the name of the individual; (b) the address and phone number of the individual; (c) the name of the entity who employs the individual; (d) the title of the individual; (e) the date that the individual failed to provide adequate supervision; and (f) the time that the individual failed to provide adequate supervision. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each individual. This demand includes all individuals, even if employed by any of the parties.

51. Identify the name or names of the person(s) it is alleged received inadequate supervision.

52. Provide the name(s) of any person(s) plaintiff will claim assaulted him/her with reference to the claim being asserted against the answering defendant(s).

53. If the person(s) identified in above have not yet appeared in this action, please provide copies of all documents, including but not limited to, affidavits of service and correspondence, which reflect any attempt to obtain jurisdiction over the individual(s).

54. Provide copies of any documents filed with or against any governmental agency(s) concerning the actions of any person(s) whom plaintiff(s) alleges caused the damages alleged in the complaint, including any criminal complaints filed and the disposition thereof.

55. For each individual you believe may have provided an oral or written statement concerning the supervision of any person involved in the incident, state (a) the name of any individual who provided a statement; and (b) the address and phone number of any individual who provided a statement. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have provided a statement. This demand includes all individuals, even if employed by any of the parties.

ALLEGED PREMISES LIABILITY

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) failed to properly maintain a premises, the following items are additionally demanded:

56. If it is alleged that the answering defendant owned the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) ownership of the premises.

57. If it is alleged that the answering defendant(s) leased the premises complained of, please provide copies of any documents you will rely upon to establish defendant(s) tenancy.

58. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

59. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

60. Provide a copy of the title for the vehicle being operated by plaintiff.
61. Provide a copy of plaintiff's drivers license.
62. Provide a copy of the registration for the vehicle in which plaintiff(s) was located when the incident occurred.
63. Provide a copy of any (a) repair record (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident; and (b) maintenance records (including logs, bills, and receipts) for the vehicle in which plaintiff(s) was located for a two-year period prior to the alleged incident.
64. Provide a copy of any recall notice received regarding the vehicle in which plaintiff(s) was located when the incident occurred.
65. Provide photographs taken of the vehicle(s) involved in the accident taken:
 - (a) Before the accident;
 - (b) After the accident.
66. Provide any estimates to repair the vehicle involved in this accident.
67. Provide any records or receipts for towing of the vehicle involved in this accident.
68. Provide a copy of the MV-104 filed by, or on behalf of, the plaintiff as a result of this accident.
69. Provide a copy of any accident report provided to any insurance company regarding this accident.
70. Provide any notes or memorandum describing this accident.
71. Provide a copy of any transcript of any Department of Motor Vehicle hearing taken with respect to this accident.
72. Provide the date, location, name of defendant or respondent, and name of Judicial Hearing Officer who presided over, any Department of Motor Vehicle hearing taken with respect to this accident.
73. Provide a copy of any insurance policy (including any umbrella or excess policy) covering the vehicle in which plaintiff(s) was located at the time of the incident.
74. Provide a copy of the no-fault file pertaining to plaintiff(s).

ALLEGED DEFAMATION

Where applicable, in addition to the foregoing, if plaintiff(s) alleges that defendant(s) defamed plaintiff(s), the following items are additionally demanded:

75. Provide a copy of any writing, publication (including any re-publications), and broadcast containing the alleged defamatory statement(s).
76. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate the untruthfulness of the alleged defamatory statement(s).
77. Provide copies of any documents, photographs, or writings which plaintiff(s) intend to use to demonstrate defendant(s) malice or reckless disregard for the truth.
78. Provide the name of any individual who you believe has information concerning the untruthfulness of the alleged defamatory statement(s) or whether the statements were made with malice or reckless disregard for the truth, stating (a) the name of the individual(s); and (b) the address and phone number of the individuals. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person. This demand includes all individuals, even if employed by any of the parties.
79. Provide copies of any documents, bills, invoices or writings which plaintiff(s) intend to use to prove any alleged special damages.

ALLEGED LEAD-BASED PAINT

Where applicable, in addition to the foregoing, if plaintiff(s) alleges injuries as a result of exposure to lead-based paint, the following items are additionally demanded:

80. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain birth and prenatal records of plaintiff(s); the authorization must include the name and address of the hospital or facility where plaintiff(s) was born and the date of birth of plaintiff(s).

81. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of any medical provider who provided prenatal care; the authorization must include the name and addresses of each medical provider and the dates of treatment.

82. Provide duly executed OCA HIPPA compliant authorizations (which expire upon the conclusion of this case) allowing the Corporation Counsel to obtain the records of all (a) health providers who have rendered pediatric care (including treatment for any of the injuries currently alleged) to plaintiff(s); and (b) health care providers that screened blood of plaintiff(s). The authorizations must contain the name and address of each medical provider as well as the dates of treatment or testing.

83. Provide duly executed authorizations enabling defendant(s) to obtain the records of any and all schools, and/or day care centers attended by the plaintiff(s) to date; the authorizations must include the name(s) and address(es) of the schools and the dates of attendance.

84. Provide the name and address of the academic institution most recently attended by the infant plaintiff's natural mother and a duly executed authorization allowing that institution to release its records to the defendant(s). If the infant plaintiff's mother is not the custodial parent, please provide the same information with respect to any adult acting as the infant plaintiff's guardian or caretaker.

85. If the infant plaintiff has any siblings, please provide the following for each such sibling:

(a) Name, date of birth and current address;

(b) Names and addresses of any and all schools, pre-schools or day-care centers attended, and duly executed authorizations allowing those institutions to release their records to the defendant(s).

86. For each infant plaintiff, provide the name, date of birth and last known address of the biological father.

87. Provide copies of any photographs, movies, or videotapes depicting the premises.

88. Provide copies of any written lease(s) pertaining to the plaintiff(s) occupancy of the premises.

89. Provide copies of any documents or writings plaintiff(s) allege were sent to the defendant(s) concerning the condition of the premises, complaints made concerning the premises, and copies of any documents relating to any legal proceedings commenced by or against plaintiff(s) pertaining to their occupancy of the premises.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S))

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, all other parties (excluding plaintiff(s)) are requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

GENERAL DEMANDS TO PARTIES (EXCLUDING PLAINTIFF(S))

1. Provide copies of complete contents of insurance policies in effect on the date of occurrence, including all endorsements, terms, and conditions, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.

2. Provide copies of all excess and umbrella insurance policies in effect on date of occurrence, including but not limited to, any which name this answering defendant(s) as an insured or as an additionally insured.

3. Provide copies of all certificates of insurance in effect on the date of occurrence, including but not limited to, any which name this defendant, or any of its agencies, as an insured or as an additionally insured.

4. Copies of all contracts, sub-contracts, leases, franchises, and indemnification agreements in effect on date of occurrence.

5. Provide copies of any documents, records or photographs relating to any repairs made to the location, premises or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.

6. Provide copies of any documents, records or logs relating to any maintenance (including cleaning, altering, and shoveling) performed at, or to, the location, premises, or item complained of in plaintiff(s) complaint prior to the happening of the alleged accident or occurrence.

7. Copies of all accident reports kept in the regular course of business regarding the occurrence complained of in plaintiff's complaint.

8. Provide a copy of plaintiff(s) Bill of Particulars and any discovery items previously exchanged, (including but not limited to; deposition transcripts and reports of physical examinations conducted of the plaintiff), and served upon or by defendant(s) or third-party defendant(s).

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING ALLEGED ROADWAY, SIDEWALK, AND CONSTRUCTION ACCIDENTS

Where applicable, in addition to the foregoing, in any action alleging defective roadway, sidewalk, or construction, the following items are additionally demanded:

9. Provide copies of all applications for permits, cut forms, opening tickets, work tickets, and paving orders.

10. Provide copies of all drawings, schematics, blueprints, strip maps, diagrams of underground facilities and of street hardware, including manhole covers, castings, and gratings.

11. Provide copies of all daily, weekly, and/or monthly progress reports, job progress photographs, and photographs of roadway color coding for entire period of construction.

12. Provide copies of all maintenance, inspection and repair records for the entire period of construction.

DEMANDS TO OTHER PARTIES (EXCLUDING PLAINTIFF(S)) INVOLVING MOTOR VEHICLE ACCIDENTS

Where applicable, in addition to the foregoing, in any action in which it is alleged that defendant(s) contributed to a motor vehicle accident, the following items are additionally demanded:

13. Provide a copy of the title for any vehicle involved in the incident.

14. Provide a copy of the driver's license for the applicable driver involved in the incident.

15. Provide a copy of the registration for the applicable vehicle involved in the incident.

16. Provide the following records for the applicable vehicle involved in the incident for a two-year period prior to the alleged incident: (a) repair records (including logs, bills, and receipts); and (b) maintenance records (including logs, bills, and receipts).

17. Provide a copy of any recall notice received regarding any vehicle involved in the incident.

18. Provide photographs of the vehicle involved in the accident taken:

- (a) before the accident;
- (b) after the accident.

19. Provide any estimates to repair the vehicle involved in this accident.

20. Provide any records or receipts for towing of the vehicle involved in this accident.

21. Provide a copy of any MV-104 related to the incident.

22. Provide a copy of any Department of Motor Vehicle hearing related to the incident; and provide (a) the date, location, name of the parties, and name of Judicial Hearing Officer who presided over any Department of Motor Vehicle hearing.

23. Provide a copy of any accident report provided to any insurance company regarding this accident.

24. Provide any notes or memorandum describing this accident.

25. Provide a copy of any insurance policy, including any umbrella or excess policies, covering the vehicle defendant or third-party plaintiff was operating at the time of this accident.

26. Provide a copy of any no-fault file pertaining to plaintiff(s) related to the incident.

**ADDITIONAL DEMANDS TO ANY THIRD-PARTY PLAINTIFF WHO HAS AN ACTION
AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

PLEASE TAKE FURTHER NOTICE that within 30 days following service of this demand, any third party-plaintiff who has an action against a party represented by the Corporation Counsel, it is requested pursuant to CPLR Article 31 to produce for discovery and inspection at the Office of the Corporation Counsel, the following items, except if at present you don't know the information requested, or if the requested documents are not within your possession or control, please so state, in which event you are requested to furnish same within 30 days after such information first becomes known to you, or such documents come into your possession or control: but, in any event, no later than forty-five days before trial.

27. Provide a copy of any document (with all attachments) previously exchanged by the parties (including pleadings, bills of particulars, deposition transcripts, medical records, correspondence, motions, discovery responses, etc.).

28. Provide a copy of all court orders and stipulations issued in the litigation.

**DEMAND FOR VERIFIED BILL OF PARTICULARS TO ANY THIRD-PARTY PLAINTIFF WHO
HAS AN ACTION AGAINST A PARTY REPRESENTED BY THE CORPORATION COUNSEL**

PLEASE TAKE NOTICE that pursuant to CPLR 3041, any third party-plaintiff who has an action against a party represented by the Corporation Counsel is required within 30 days following service of this demand to serve upon ZACHARY W. CARTER, Corporation Counsel, a verified bill of particulars setting forth in reasonable detail a statement of the following:

1. State separately the alleged negligence of any party represented by the Corporation Counsel, if applicable.

2. State separately the alleged intentional wrongs committed by any party represented by the Corporation Counsel, if applicable.

3. State the name of any employee or agent of any party represented by the Corporation Counsel alleged to have committed any act which contributed to an injury.

4. State (a) whether any repair was made to the accident location prior to the happening of the alleged accident; (b) when any repair was made; (c) where any repair was made; (d) who made any repair; and (e) what repairs were made.

5. State (a) whether any party represented by the Corporation Counsel had notice of an alleged defective condition which contributed to an injury; (b) which party had notice; (c) whether the party had actual notice of a condition; (d) whether the party had constructive notice of a condition; and (e) whether it is alleged that the party created the condition.

6. If actual notice is claimed, please state (a) the name of any individual(s) who had actual notice; (b) the job title of any individual(s) who had actual notice; (c) the employer of any individual(s) who had actual notice; and (d) the address and phone number of any individual(s) who had actual notice. If you are unable to provide any of the above information, please provide a description reasonably sufficient to identify each person you believe may have had actual notice. This demand includes all individuals, even if employed by any of the parties.

7. If constructive notice of a condition is claimed, please state the alleged condition and the length of time said condition is alleged to have existed prior to the happening of the alleged incident.

8. If third-party plaintiff(s) claims the violation of any statute, ordinance, rule, order, regulation, or directive, please state separately all such statutes, ordinances, rules, regulations, and directives alleged to have been violated by any party represented by the Corporation Counsel.

9. If applicable, please state whether any party represented by the Corporation Counsel was a party to a contract; and please state the:

(c) parties to the contract;

(d) contract number.

10. If applicable, please state any item of construction, excavation, and demolition work which was not so constructed, shored, equipped, guarded, arranged, operated, and conducted as to provide reasonable and adequate safety; and please state (a) the manner in which the work caused an alleged injury; and (b) if applicable, the control exercised by any party represented by the Corporation Counsel and the exact manner in which said control was exercised.

Dated: New York, New York
October ____, 2014

Yours, etc.
ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

TO:

NEIL WOLLERSTEIN
the attorney(s) for Plaintiff(s)
895 SHERIDAN AVE
BRONX, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- x
ROBERTO MARTINEZ,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).

NOTICE OF DEPOSITION

Index #: 24741/2014E

Law Dept. #: 2014-037229

----- x
PLEASE TAKE NOTICE, that pursuant to Article 31 of the Civil Practice Law and Rules,
the undersigned will take by deposition the testimony of all adverse parties at a time and date to be mutually
agreed upon at the pre-calendar conference.

PLEASE TAKE FURTHER NOTICE, that at the time of the taking of the testimony the
said adverse parties shall produce all books and papers in their possession relating to the issues upon which
said parties are to be examined and upon your failure to so produce them, parol and/or secondary evidence
thereof and of the contents of the same will be required.

Yours, etc.
ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants THE CITY OF NEW
YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT,
100 Church Street
New York, New York 10007

TO:
NEIL WOLLERSTEIN
the attorney(s) for Plaintiff(s)
895 SHERIDAN AVE
BRONX, NY 10451

VERIFICATION

Re: ROBERTO MARTINEZ; LD #: 2014-037229

AINSLEY HARRIS being duly sworn deposes and says that: deponent is an employee of the Office of the Corporation Counsel; that deponent has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to deponent's own knowledge, except as to the matters alleged upon information and belief, which deponent believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof.

Dated: New York, New York
October 31, 2014


AINSLEY HARRIS

Sworn to before me this
31 day of October, 2014


NOTARY PUBLIC

MILLCENT NICHOLAS
Commissioner of Deeds
City of New York No. 4-7071
Certificate Filed in New York County
Commission Expires April 1, 2015

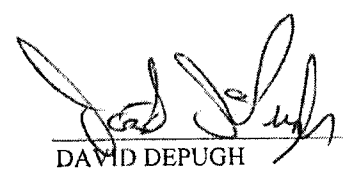
STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: New York, New York
October 31, 2014

By:


DAVID DEPUGH
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

Please do not send correspondence to the above named individual unless otherwise directed. See Answer back for additional contact information.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERTO MARTINEZ,

Plaintiff(s),

AFFIDAVIT OF SERVICE

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).

Index #: 24741/2014E

Law Dept. #: 2014-037229

STATE OF NEW YORK)

: ss.:

COUNTY OF NEW YORK)

Joycelyn Jack, being duly sworn deposes and says that:

1. The deponent is not a party to the action and is 18 years of age or older.
2. On 11/03/2014, the deponent served the annexed ANSWER AND

DEMANDS upon the following person or persons:

ROBERTO MARTINEZ
by mailing a copy to his/her/their attorney(s),
NEIL WOLLERSTEIN
at 895 SHERIDAN AVE
BRONX, NY 10451

being the address designated by said attorney(s) for that purpose by depositing the same in a first class, postpaid, properly addressed wrapper, in a post office or official depository under the exclusive care and custody of the United States Postal Service within the State of New York pursuant to CPLR 2103(b)(2).

Sworn to before me this
3rd day of November, 20 14.

Joycelyn Jack
Joycelyn Jack

Dmitriy Aronov

DMITRIY ARONOV
Commissioner of Deeds
City of New York No. 5-1884
Certificate Filed in New York County
Commission Expires December 1, 2015

Index #: 24741/2014E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERTO MARTINEZ,

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ABDIEL ANDERSON, POLICE OFFICER JOHN DOE
AND POLICE OFFICER JOHN ROE,

Defendant(s).

ANSWER AND DEMANDS

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF
NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT,

100 Church Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)

(212) 356-2680/2683

All Other Matters (by county of venue)

(718) 590-3487 (EBT's-3971) (Bronx)

(718) 222-2000 (EBT's-2069) (Kings)

(212) 788-0646 (EBT's-0628) (New York)

(718) 206-4731 (EBT's (718) 206-4703) (Queens)

(718) 447-5983 (EBT's-5985) (Richmond)

(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #: **2014-037229**

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERTO MARTINEZ,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE ABDIEL ANDERSON,
POLICE OFFICER JOHN DOE AND POLICE OFFICER
JOHN ROE,

Defendant(s).

AMENDED ANSWER

Index #: 24741/2014E

Law Dept. #: 2014-037229

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT, DETECTIVE ABDIEL ANDERSON, by
ZACHARY W. CARTER, Corporation Counsel, answering the complaint, allege upon
information and belief:

1. Deny each allegation set forth in paragraph(s) 12-16, 18, 23-29, 31-35, 37,
38, 40-45, 47-53, 55-59, 62-79, 82-88, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to
the truth of the allegations set forth in paragraph(s) 1, 5-11, 17, 21, 36, 61, 81, inclusive.
3. Deny the allegations set forth in paragraph(s) 19, 20, inclusive, except that
a notice of a claim was presented, that more than thirty days have elapsed without adjustment
thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, 4, inclusive, except
that the City of New York is a municipal corporation which employed DETECTIVE ABDIEL
ANDERSON and maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 22, 30, 39, 46, 54, 60, 80, inclusive, except as otherwise pleaded herein.

AFFIRMATIVE DEFENSE(S)

6. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

7. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

8. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

9. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this

action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

10. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

11. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

12. Plaintiff(s)' complaint fails to allege a prima facie case against the defendant answering hereby.

13. Plaintiff(s)' complaint fails to state a cause of action upon which relief can be granted.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

ZACHARY W. CARTER
Corporation Counsel
100 Church Street
New York, New York 10007

VERIFICATION

U. ROSE VIVINETTO an attorney admitted to practice before the Courts of the State of New York, affirms pursuant to Rule 2106 of the Civil Practice Laws and Rules: affirmant is an employee of the Office of the Corporation Counsel; that affirmant has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to affirmant's own knowledge, except as to the matters alleged upon information and belief, which affirmant believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof; and further swears that on this date he/she served said answer, cross-claim(s) and counterclaim(s), if any, together with the accompanying combined demands for particulars and discovery upon:

NEIL WOLLERSTEIN
the attorney(s) for Plaintiff(s)
at 895 SHERIDAN AVE
BRONX, NY 10451

by mailing a copy to the person at the address designated by him or her for that purpose by depositing the same in a first class, postpaid, properly addressed wrapper, in a post office or official depository under the exclusive care and custody of the United States Postal Service within the State of New York.

Dated: New York, New York
February 11, 2015

U. Rose Vivinetto
U. ROSE VIVINETTO

STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: New York, New York
February 11, 2015

By: U. Rose Vivinetto
U. ROSE VIVINETTO
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

Please do not send correspondence to the above named individual unless otherwise directed. See Answer back for additional contact information.

AFFIRMATION OF SERVICE

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

The undersigned, an attorney admitted to practice in the courts of New York State, shows: that she is employed in the office of the Corporation Counsel of the City of New York, and affirms this statement to be true under the penalties of perjury, pursuant to Rule 2106 CPLR:

That on the 11 day of February, 2015 she served the annexed **AMENDED ANSWER** upon:

NEIL WOLLERSTEIN

the attorney(s) for Plaintiff(s)

at 895 SHERIDAN AVE

BRONX, NY 10451

being the address within the State theretofore designated by them for that purpose, by causing depositing a copy of the same, enclosed in a prepaid wrapper in a post office box situated in the Borough of New York, City of New York, regularly maintained by the Government of the United States.

Dated: New York, New York
February 11, 2015


U. ROSE VIVINETTO

Index #: 24741/2014E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ROBERTO MARTINEZ,

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ABDIEL ANDERSON, POLICE OFFICER JOHN DOE
AND POLICE OFFICER JOHN ROE,

Defendant(s).

AMENDED ANSWER AND DEMANDS

ZACHARY W. CARTER

Corporation Counsel

Attorney for Defendants THE CITY OF NEW YORK, THE CITY OF
NEW YORK S/H/A NEW YORK CITY POLICE DEPARTMENT,
DETECTIVE ABDIEL ANDERSON,

100 Church Street

New York, New York 10007

Telephone Numbers:

Early Intervention Unit (settlements – all Boroughs)
(212) 356-2680/2683

All Other Matters (by county of venue)

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(718) 222-2000 (EBT's-2069) (Kings)

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(718) 206-4731 (EBT's (718) 206-4703) (Queens)

(718) 447-5983 (EBT's-5985) (Richmond)

(212) 356-3235 (Pleadings Unit)

Please refer to the following Law Dept. #: **2014-037229**

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

C

1

2

50-h HEARING

3

In the Matter of the Claim of

RUBAN AYALA, JR.,

4

CLAIMANT,

5

-against-

6

THE CITY OF NEW YORK,

RESPONDENT.

7

-----X
Claim No: 2014PI010500

8

9

DATE: June 3, 2014

10

TIME: 4:00 p.m.

11

12

13

50-h HEARING of the Claimant,

14

RUBAN AYALA, JR., pursuant to statute, held

15

at the office of Jeffrey Samel & Partners,

16

Esqs., 150 Broadway - 20th Floor, New York,

17

New York 10038, before Gloria Anselm, a

18

Notary Public of the State of New York.

19

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1

2 A P P E A R A N C E S:

3

4 WOLLERSTEIN & FUTORAN
5 Attorneys for the Claimant
6 RUBAN AYALA, JR.
7 59 Maiden Lane - 17th Floor
8 New York, New York 10038
9 BY: ERIK MCKENNA, ESQ.,
10 of Counsel

8

9 JEFFREY SAMEL & PARTNERS, ESQS.
10 Attorneys for the Respondent
11 THE CITY OF NEW YORK
12 150 Broadway - 20th Floor
13 New York, New York 10038
14 BY: GEORGE SAWAYA, ESQ.,
15 of Counsel
16 Claim No: 2014PI010500

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* * *

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1 CORREA

2 R U B A N A Y A L A, J R., called as a
3 witness, having been first duly sworn by a
4 Notary Public of the State of New York, was
5 examined and testified as follows:

6 EXAMINATION BY

7 MR. SAWAYA:

8 Q. Please state your name for the
9 record.

10 A. Ruban Ayala, Jr.

11 Q. Where do you reside?

12 A. 349 Elton Avenue, Bronx, New
13 York 10455.

14 Q. Good afternoon, Mr. Ayala. My
15 name is George Sawaya and I will be asking
16 you some questions about your claim against
17 the city today. I would ask that you keep
18 your voice up. I would ask that you make
19 all of your answers in words rather than
20 gestures. The reason for that is the
21 reporter. So for instance, if you shake
22 your head like this, I know you mean yes,
23 but she can't type that into her machine,
24 so please use words instead. Also, I would
25 ask that you wait until I finish my

AYALA

1
2 question before you begin your answer. The
3 reason for that, once again, is the
4 reporter, in that she can't take down the
5 words of two people speaking at the same
6 time. So for example, I may be in the
7 process of framing a question and before
8 I'm quite finished with it, while I'm still
9 speaking you might say to yourself you know
10 the answer to that and start to launch into
11 your answer before I totally stop speaking.
12 In normal conversation, that is perfectly
13 okay, but here you're going to drive the
14 reporter crazy if you don't wait until I
15 stop speaking completely before you begin
16 your answer, so please try to do that.
17 Finally, if I ask you any questions you
18 don't understand, tell me and I will be
19 happy to rephrase them. If you answer the
20 questions that I put to you, I will assume
21 that you've understood them.

22 A. Yes.

23 Q. First, may I have your date of
24 birth?

25 A. 3/17/96.

1 AYALA

2 MR. MCKENNA: Keep your voice
3 up.

4 Q. And your Social Security
5 number?

6 MR. SAWAYA: Off the record.
7 (Whereupon, an off-the-record.
8 discussion was held.)

9 MR. SAWAYA: If we leave a
10 blank in the transcript, could your client
11 fill in the Social Security number, please.

12 MR. MCKENNA: Yes.

13

14 Q. How long have you lived at your
15 current address?

16 A. About two months.

17 Q. Does anyone live there with
18 you?

19 A. Yes.

20 Q. Who is that?

21 A. Father, Ruban Ayala.

22 Q. Your father name is junior?

23 A. Yes.

24 Q. What is your name?

25 A. The same.

1 AYALA

2 MR. MCKENNA: Your father's
3 middle name is Junior?

4 THE WITNESS: Yes.

5 Q. Where did you live before your
6 current address?

7 A. 349 Elton Avenue.

8 Q. In the Bronx?

9 A. Yes.

10 Q. How long did you live there?

11 A. About four months.

12 Q. Where did you live before that?

13 A. I was living at 394 Concord
14 Avenue.

15 Q. In the Bronx?

16 A. Yes.

17 Q. How long did you live there?

18 A. About two years with my mother.

19 Q. Are you a student?

20 A. Yes.

21 Q. What year are you in?

22 A. What you mean what year?

23 Q. Where do you go to school?

24 A. Bronx Leadership Academy 2.

25 Q. You having trouble speaking?

1 AYALA

2 A. I don't talk that loud.

3 Q. Why is that?

4 A. I don't know. It bothers my
5 throat.

6 Q. Is Bronx Leadership Academy a
7 high school?

8 A. Yes.

9 Q. What year are you?

10 A. Tenth.

11 Q. Where is that located?

12 A. I don't have the number, but on
13 the Concourse.

14 Q. In the Bronx?

15 A. Yes.

16 Q. What was the date of the
17 beginning of the incident that you're
18 complaining about?

19 A. January 20, 2014.

20 Q. What time of day did the
21 incident begin?

22 A. Eleven a.m.

23 Q. What day of the week was that?

24 A. I believe, a Monday.

25 Q. Where were you when the

1 AYALA

2 incident began?

3 A. In my grandmother's apartment.

4 Q. What is her name?

5 A. M-I-L-L-Y M-E-L-A-G-O-S.

6 Q. Where does she live?

7 A. 972 Leggett.

8 Q. And did she have an apartment
9 number?

10 A. Yes.

11 Q. What was it?

12 A. 5A.

13 Q. At this time, was there anybody
14 else in your grandmother's apartment
15 besides you?

16 A. Yes.

17 Q. Who was there?

18 A. My uncle.

19 Q. What his name?

20 A. Roberto Martinez.

21 Q. Did he live at that apartment?

22 A. Yes.

23 Q. Was your grandmother there at
24 that time?

25 A. Yes.

1 AYALA

2 Q. Was there anybody else in the
3 apartment at this time besides you?

4 A. No.

5 Q. Now, how long had you been at
6 home when the incident began?

7 A. What?

8 Q. Had you gone out of the
9 apartment before the incident began that
10 day?

11 A. Yes.

12 Q. Where did you go?

13 A. Around the corner.

14 Q. What did you do around the
15 corner?

16 A. I went to the store.

17 Q. What did you buy?

18 A. Some soda and some chips.

19 Q. What time was that?

20 A. About 10:40.

21 Q. Do you know the name of the
22 store you went to?

23 A. No. It's a deli.

24 Q. Was it on Leggett?

25 A. Yes.

1 AYALA

2 Q. And where?

3 A. And Beck.

4 Q. Now, when you left the
5 apartment to go there and then go back to
6 your apartment, did you talk to anybody on
7 the way?

8 A. No.

9 Q. What were you doing at the time
10 of the incident?

11 A. We was watching TV and eating.

12 Q. About 11:00 a.m., or so what
13 happened?

14 A. We heard a knocking on the
15 door.

16 Q. Did anybody answer the door?

17 A. Yes. My uncle.

18 Q. Who was at the door?

19 A. They said some guy name Jason.

20 Q. Somebody name Jason was at the
21 door?

22 A. Yes.

23 Q. What happened next?

24 A. After that my uncle went to
25 look through the peephole and they was

1 AYALA

2 covering it. He thought was my cousin,
3 because that is his name also. When they
4 came in, they grab him and came inside and
5 grab me.

6 Q. How many people came into the
7 apartment?

8 A. Three.

9 Q. Were they in uniform?

10 A. Plain clothes.

11 Q. When they came in, did they say
12 anything?

13 A. No. He just told me to stand
14 up.

15 Q. Did you stand up?

16 A. Yes.

17 Q. What happened next?

18 A. He told me to walk and I
19 started walking and he grab my arm and we
20 walk out the apartment.

21 Q. Where did you go outside the
22 apartment?

23 A. We were standing in the
24 hallway.

25 Q. And how long did you stand in

1 AYALA

2 the hallway?

3 A. About five minutes.

4 Q. What happen during that time?

5 A. My grandmother came out and she

6 asked what happen and he said to get back

7 inside.

8 Q. Did any of these men identify

9 themselves?

10 A. No.

11 Q. Did they show any badges?

12 A. No.

13 Q. What happened next?

14 A. After they took us downstairs

15 and in the lobby, they put handcuffs on us

16 and then put us inside a blue van.

17 Q. When they came into the

18 apartment, did any of them display a

19 warrant?

20 A. No.

21 Q. Did anybody ask them whether

22 they had a warrant?

23 A. No.

24 Q. Before you were placed in the

25 van, were you searched?

1 AYALA

2 A. Yes.

3 Q. Did the police take anything
4 from you at that time?

5 A. No. Yes, my phone.

6 Q. Eventually did you get that
7 back?

8 A. Yes.

9 Q. Was your uncle, Robert, also
10 handcuffed?

11 A. Yes.

12 Q. Was he also placed in the van?

13 A. Yes.

14 Q. And where did the van go?

15 A. The van started driving around
16 for like thirty minutes and then stop for a
17 little while and when we was at the
18 precinct the guy said go to the bathroom
19 and take my clothes --

20 MR. MCKENNA: Let's focus on
21 the transport first.

22 Q. During the thirty minutes, did
23 the van make any stops?

24 A. Yes. They completely stop;
25 they was talking.

1 AYALA

2 Q. Were any other prisoners placed
3 in the van?

4 A. Yes.

5 Q. Did you know any of them?

6 A. No.

7 Q. After about thirty minutes
8 where did the van go?

9 A. To the 48th Precinct.

10 Q. How long in all did you spend
11 at the 48th Precinct?

12 A. Say, about half an hour.

13 Q. Do you know whether the police
14 searched your grandmother's apartment?

15 A. Yes.

16 Q. They did?

17 A. Yes.

18 Q. Do you know if they took
19 anything from it?

20 A. I don't know.

21 Q. You don't know or they didn't?

22 A. I don't know if they took
23 anything from it.

24 Q. At the precinct, were you
25 photographed?

1 AYALA

2 A. Yes.

3 Q. Fingerprinted?

4 A. Yes.

5 Q. Were you searched again?

6 A. Yes.

7 Q. Was that search with your
8 clothing on or off?

9 A. He told me to take it off.

10 Q. How long did that search take?

11 A. Five minutes.

12 Q. At that time, did the police
13 take anything from you?

14 A. No.

15 Q. Do you know if your uncle,
16 Robert, was also searched without his
17 clothing?

18 A. No.

19 Q. He wasn't or you don't know?

20 A. I do not know.

21 Q. At the precinct, did any
22 officer ask you any questions?

23 A. No.

24 Q. Up to this time, did anybody
25 tell you why you had been arrested?

1 AYALA

2 A. No.

3 Q. From the 48th Precinct, where
4 did you go?

5 A. From the 48th Precinct I went
6 to a van and then to the booking.

7 Q. How long in all did you spend
8 at the bookings?

9 A. A day and a half, I believe.

10 Q. Do you know the date when you
11 left Central Booking?

12 A. It was January 21st.

13 Q. What time was it?

14 A. Around 6:00.

15 Q. P.M.?

16 A. Yes.

17 Q. At that place, were you given
18 a lawyer?

19 A. Yes.

20 Q. Do you remember the lawyer's
21 name?

22 A. Not at this moment.

23 Q. Was the lawyer from the Legal
24 Aid Society?

25 A. I have no idea.

1 AYALA

2 Q. Was the lawyer provided to you?

3 A. Yes.

4 Q. When you were at Central
5 Booking, did anybody tell you what you were
6 charged with?

7 A. No.

8 Q. Do you know if your uncle,
9 Robert, was also given an attorney?

10 A. No.

11 Q. You don't know?

12 A. No, I do not know.

13 Q. Did you go before a judge?

14 A. Yes.

15 Q. What happened when you went
16 before the judge?

17 A. They dismiss the case.

18 Q. At that time or at a later
19 time?

20 A. At a later time.

21 Q. When you went in front of the
22 judge for that first time, what happened?

23 A. He said I can go, don't get
24 into any trouble for six to nine months.

25 Q. Did anybody of explain to you

1 AYALA

2 what was the reason you had been arrested?

3 A. No.

4 Q. What happen your uncle, Robert?

5 A.. I seen the judge first and he
6 was still inside the cell and courtroom.

7 Q. Do you know what happened to
8 him when he saw the judge?

9 A. He was released.

10 Q. When you were released, were
11 you given any kind of piece of paper?

12 A. I can't remember.

13 MR. SAWAYA: Counsel, do you
14 have a certificate of disposition?

15 MR. MCKENNA: I do not. There
16 were further court dates. It was not
17 an ACD.

18 Q. After you went to court on the
19 21st of January, did you have to go back to
20 court?

21 A. Yes.

22 Q. How many times?

23 A. Three times.

24 Q. When was the last time you went
25 back?

1 AYALA

2 A. 4/24/14.

3 Q. What happened in court on that
4 day?

5 A. They dismissed it.

6 Q. Did you ever learn what it was
7 that you were charged with?

8 A. No.

9 MR. SAWAYA: Counsel, do you
10 know the record shows he was charged
11 with?

12 MR. MCKENNA: I have to review,
13 but I think it was possession of
14 marijuana.

15 Q. To the best of your knowledge,
16 was there any marijuana in your
17 grandmother's apartment on January 20th?

18 A. No.

19 Q. Do you know what happened to
20 any charges against your uncle, Robert?

21 A. No.

22 Q. You don't know what happened to
23 charge against him?

24 A. No. He is still going to
25 court.

1 AYALA

2 Q. He is still going to court?

3 A. Yes.

4 Q. Were you living in your
5 grandmother's apartment at this time?

6 A. Yes.

7 Q. How many bedroom were there in
8 that apartment?

9 A. Three.

10 Q. Did you have your own room?

11 A. Yes.

12 Q. And did your uncle, Robert,
13 have his own room?

14 A. He actually stay, I believe,
15 with his girlfriend. He used to stay with
16 her and I stay in his room, because he let
17 me bring my clothes there.

18 Q. In that apartment, your
19 grandmother had her own room?

20 A. Yes.

21 Q. And was there anybody in the
22 third bedroom?

23 A. No.

24 Q. What was the reason you moved
25 from your grandmother's apartment?

1 AYALA

2 A. First, she was saying I can't
3 stay there anymore.

4 Q. Why?

5 A. I don't know. She said had to
6 go to my father's house.

7 Q. When you left court on January
8 21st, the first time you went to see the
9 judge, where did you go when you left
10 court?

11 A. I went to my dad's house.

12 Q. Where is that?

13 A. 349 Elton Avenue.

14 Q. What is his name?

15 A. Ruban.

16 Q. What did you do when you got to
17 your father's house?

18 A. I told him what happen and he
19 just telling me that he is going to get a
20 lawyer, he is going to talk to a lawyer for
21 me.

22 Q. During the time that you were
23 in custody, did anybody hit you?

24 A. Inside the cell.

25 Q. Who hit you inside the cell?

1 AYALA

2 A. Another guy.

3 Q. Another prisoner?

4 A. Yes.

5 Q. Did you get any medical
6 attention after that?

7 A. Yes.

8 Q. Where did he hit you?

9 A. In my forehead.

10 Q. Why did he hit you?

11 A. I don't know. When he came in
12 -- first, everybody was on the benches and
13 he said excuse me and I was lying on the
14 bench and he started putting on his
15 sneakers and he said don't ask anything and
16 you don't tell me. He told me to shut the
17 F up and I said who you talking to and he
18 just punch me and the CO came in and grab
19 him and put handcuffs and take him out.

20 Q. Have you been asked to testify
21 against that guy?

22 A. No.

23 Q. Do you know his name?

24 A. No.

25 Q. Did any police officer or

1 AYALA

2 corrections officers hit you?

3 A. No.

4 Q. Did any of them call you any
5 names?

6 A. No.

7 Q. As a result of anything that
8 happened in this incident, did you receive
9 any medical attention?

10 A. No.

11 Q. Or any psychiatric or
12 psychological attention?

13 A. No.

14 Q. Did your uncle, Robert, ever
15 stay over at 972 Leggett Avenue at the time
16 you were living there?

17 A. Yes.

18 Q. And then sometimes he stayed
19 with his girlfriend. Is that right?

20 A. Yes.

21 Q. In addition to what you've
22 already told me, has this incident had any
23 effect on your life?

24 A. Well, my grandmother kick me
25 out and I can't go to her house anymore.

1 AYALA

2 And my friends don't hang out with me,
3 because they seen when the cops put the
4 handcuffs on me and threw me in the van.
5 Some of them don't talk to me.

6 Q. Who is that?

7 A. My friends I go to school with
8 and basketball.

9 Q. Which of your friends?

10 A. What you mean?

11 MR. MCKENNA: Identify.

12 A. T-U-O-N-E F-L-O-I-D.

13 Q. Where does he live?

14 A. I don't know the number of the
15 building, but I know on the corner.

16 Q. Any other?

17 A. D-U-L-I. I don't know her last
18 name.

19 Q. Anybody else?

20 A. Anderson, and that was all.

21 Q. Is there an order of protection
22 against you in favor of your grandmother?

23 A. No.

24 Q. Did your uncle, Robert, remain
25 living there or does he live someplace else

1 AYALA

2 too?

3 A. I don't know.

4 Q. Is there anything you would
5 like to add any way this incident has
6 affected you?

7 A. No.

8 Q. Was January 20th a school day
9 for you?

10 A. Yes.

11 Q. Was there any reason you were
12 not in school?

13 A. My grandmother didn't let me go
14 to school, because I wasn't feeling well
15 that day.

16 Q. Other than this one, did you
17 ever file a claim against the city or any
18 other public agency?

19 A. No.

20 Q. Have you ever been convicted of
21 a crime?

22 A. No.

23 Q. Other than this instance, have
24 you ever been arrested?

25 MR. MCKENNA: Objection. I

1 AYALA

2 instruct the claimant not to answer.

3 Q. Have you ever gone by any name
4 other than Ruban Ayala, Jr.?

5 A. No.

6 Q. And in addition to doing what
7 you're doing now, did you make any
8 complaint to the Civilian Complaint Review
9 Board or the Internal Affairs of the police
10 department?

11 A. I don't understand the
12 question.

13 Q. Did you ever complain to
14 anybody else at police department about
15 what happened?

16 A. No.

17

18 (Continued on next page to include jurat.)

19

20

21

22

23

24

25

1 AYALA

2 MR. SAWAYA: Thank you very
3 much. I have no further questions.
4 I request you forward 160.50
5 authorization to the comptroller.

6 MR. MCKENNA: We will.

7 MR. SAWAYA: Thank you very
8 much.

9 (Whereupon, at 4:25 p.m., the
10 Examination of this Witness was concluded.)

11

12

13

RUBAN AYALA, JR.

14

15 Subscribed and sworn to before me
16 this _____ day of _____ 2014.

17

18 _____
NOTARY PUBLIC

19

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I N D E X

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4

EXAMINATION BY

PAGE

5

MR. SAWAYA:

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INFORMATION AND/OR DOCUMENTS REQUESTED

8

INFORMATION AND/OR DOCUMENTS

PAGE

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Line provided for his Social

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STATE OF NEW YORK

)

5

COUNTY OF KINGS

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: SS.:

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9

I, GLORIA ANSELM, a Notary Public for
and within the State of New York, do hereby
certify:

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25

That the witness whose examination is
hereinbefore set forth was duly sworn and
that such examination is a true record of
the testimony given by that witness.

I further certify that I am not
related to any of the parties to this
action by blood or by marriage and that I
am in no way interested in the outcome of
this matter.

IN WITNESS WHEREOF, I have hereunto
set my hand this 14th day of June 2014.

Gloria Anselm

GLORIA ANSELM

D

1

2 50-h HEARING

3 -----X
4 In the Matter of the Claim of

5 ROBERTO MARTINEZ,

6 CLAIMANT,

7 -against-

8

9 CITY OF NEW YORK and NEW YORK CITY POLICE
10 DEPARTMENT

11

12 RESPONDENT.

13 -----X
14 Claim No.: 2014PI010499

15

16 DATE: October 7, 2014

17 TIME: 12:25 P.M.

18

19

20 50-h HEARING of ROBERTO MARTINEZ,

21 the Claimant in the above-entitled matter,

22 pursuant to a Statute, held at the offices

23 of Jeffrey Samel & Partners, 150 Broadway,

24 20th Floor, New York, New York 10038,

25 before CHARLES MAIORINI a Notary Public of

the State of New York.

1 R. MARTINEZ

2 R O B E R T O M A R T I N E Z, called as
3 a witness, having been first duly sworn by
4 a Notary Public of the State of New York,
5 was examined and testified as follows:

6 EXAMINATION BY

7 MR. CORNISH:

8 Q. Please state your name for the
9 record.

10 A. Roberto Martinez.

11 Q. What is your address?

12 A. 972 Leggett Avenue,
13 Apartment 5A, Bronx, New York 10455.

14 Q. Good afternoon, Mr. Martinez.
15 My name is Christopher Cornish. I'm going
16 to be asking you a few questions. If you
17 don't understand a question, just tell me
18 and I'll try to rephrase it for you. When
19 you answer, you need to answer out loud,
20 not with gestures or nods of the head,
21 since everything you say is going to be
22 taken down by the Reporter. Also, it's
23 important that if you anticipate the answer
24 to a question, that you wait until I finish
25 before answering. That helps the Reporter

1 R. MARTINEZ

2 A. 132.

3 Q. Are you left or right-handed?

4 A. Right-handed.

5 Q. Do you use corrective lenses?

6 Either glasses or contact lenses for any
7 reason?

8 A. Glasses because I can't see
9 from far.

10 Q. You mean for distance?

11 A. Yes.

12 Q. What's your marital status?

13 A. What do you mean by that?

14 Q. Are you married?

15 A. No.

16 Q. Do you have any children?

17 A. Yes.

18 Q. What are their names and ages?

19 A. My daughter is Desnian

20 Martinez.

21 Q. How old is she?

22 A. She's four and my son is Zaiden

23 Martinez.

24 Q. How old is he?

25 A. Two.

1 R. MARTINEZ

2 A. Yes.

3 Q. What was your employment at
4 that time?

5 A. Demolition.

6 Q. In January of this year, were
7 you involved in an incident where you were
8 placed under arrest?

9 A. Yes.

10 Q. What was the date that that
11 happened?

12 A. January 20th, 2014.

13 Q. Do you recall what day of the
14 week it was?

15 A. It was a Monday.

16 Q. When you were first approached
17 by any police officers, about what time was
18 that?

19 A. This was about 11:10 A.M.

20 Q. Where were you when you were
21 first approached by police officers?

22 A. I was home.

23 Q. When you say "home," you mean
24 inside the apartment?

25 A. I was inside the apartment.

1 R. MARTINEZ

2 that officer in uniform?

3 A. No.

4 Q. Can you describe that officer?

5 A. No.

6 Q. Do you recall anything about
7 the officer other than his grabbing you?

8 A. No.

9 Q. Did the officer identify
10 himself?

11 A. No.

12 Q. When the officer did that,
13 grabbed you and exchanged places, how did
14 you react? What did you do?

15 A. I just got nervous like what's
16 going on. That was my reaction towards
17 everything, like what's going on.

18 Q. Besides yourself, was anyone
19 else in the apartment at the time?

20 A. Yes.

21 Q. Who else was there?

22 A. My mother was there and my
23 nephew Ruben Ayala.

24 Q. When this happened, did they
25 come to the door also?

1 R. MARTINEZ

2 Q. How many officers were there in
3 the hallway?

4 A. There was three.

5 Q. That would include the one that
6 grabbed you and changed places?

7 A. Yes.

8 Q. Were they all detectives?

9 A. Yes.

10 Q. Can you describe any of them?

11 A. No, never seen them.

12 Q. Just so I'm clear, right after
13 you were pulled out into the hallway, you
14 were handcuffed at that time?

15 A. No.

16 Q. When was it the handcuffs were
17 put on?

18 A. As soon as I got into the
19 hallway.

20 Q. Did the officers say anything
21 before putting the handcuffs on?

22 A. No, the officer, he just kept
23 telling me just to shut the F up.

24 Q. Did any one of the officers ask
25 you for your name?

1 R. MARTINEZ

2 A. No.

3 Q. Did they take you immediately
4 down to the van?

5 A. They took me immediately down
6 to the van, yes.

7 Q. The other person they took was
8 your nephew?

9 A. Yes, Ruben Ayala.

10 Q. Did they take anyone else from
11 the building?

12 A. No.

13 Q. How do you spell Ayala?

14 A. A-Y-A-L-A.

15 Q. After being taken down to the
16 van, what did the officers do?

17 A. They took mines and my nephew's
18 information and then we got inside the van.
19 We got in the van, drove around for about
20 five minutes until we got to the precinct
21 where we went and that was the 48th
22 Precinct.

23 Q. What information was taken in
24 the van? What did they ask you for?

25 A. They just asked if I have any

1 R. MARTINEZ

2 put into a holding cell?

3 A. Yes.

4 Q. Were the handcuffs taken off?

5 A. Yes.

6 Q. Was any processing done at the
7 precinct?

8 A. Yes, I got photographed and
9 then I had gotten fingerprinted then after
10 I got fingerprinted they took me straight
11 to the bathroom and strip-searched me.

12 Q. How long were you at the
13 precinct house?

14 A. For about ten minutes before
15 they took us to Central Booking.

16 Q. It was during that ten minutes
17 that you were strip-searched?

18 A. Yes.

19 Q. While you were at the precinct
20 house, did anyone tell you why you were
21 being arrested?

22 A. No.

23 Q. When you were transported to
24 Central Booking, were you again handcuffed?

25 A. Yes.

1 R. MARTINEZ

2 Q. Did you ever get any of the
3 officers' names?

4 A. No.

5 Q. Would you recognize the name of
6 Abdeel Anderson?

7 A. No.

8 Q. When you were taken to Central
9 Booking, was your nephew also taken?

10 A. Yes.

11 Q. When you complained to the
12 officer with the dreads about how the
13 handcuffs were applied, what did the
14 officer do in response?

15 A. He told me "Don't worry, relax.
16 They will be coming off soon."

17 Q. At Central Booking were you
18 again put into a holding cell?

19 A. Yes.

20 Q. Were the handcuffs again taken
21 off at some point?

22 A. Yes.

23 Q. Was any processing done at
24 Central Booking? Did they take an Iris
25 scan and stuff like that?

1 R. MARTINEZ

2 same answer he just provided.

3 MR. CORNISH: Well, not
4 necessarily. That's why I wanted to
5 clarify.

6 Q. When you went before the judge,
7 did the judge tell you about the charges?
8 Did he say that it was concerning a drug
9 sale?

10 A. Yes.

11 Q. Were you then released?

12 A. Yes.

13 Q. You were released on your own
14 recognizance of R and R, would that be
15 correct?

16 A. Yes.

17 MR. MCKENNA: Can we just get
18 that time? You said it was the next
19 day. Can we get an approximate time
20 so we have a full timeline for
21 how long --

22 WITNESS: It was about 6:30

23 P.M.

24 Q. Do you know if your nephew, if
25 any charges were brought against him?

1 R. MARTINEZ

2 Q. What happened at that time?

3 A. My case had got dismissed.

4 Q. You were told it was being
5 dismissed?

6 A. Yes.

7 MR. McKENNA: What number
8 appearance was that? How many
9 appearances did you make in total?

10 WITNESS: 4, 5.

11 Q. It was at that last one in July
12 you were told the charges were being
13 dismissed?

14 A. Yes.

15 Q. During the time that you were
16 in detention, that's the time from when the
17 officers first put handcuffs on you until
18 you were released 6:30 P.M. the following
19 day after seeing the judge, did you ask
20 anyone for any medical assistance during
21 that time?

22 A. No.

23 Q. During the time from when the
24 officers first came to your home until they
25 took you to the precinct house, did any

1 R. MARTINEZ

2 that?

3 A. I get nervous to open my house
4 door. I get nervous to talk to police
5 officers. I get stressed out from time to
6 time after the situation because it brought
7 me trust issues with my mom and I'll be a
8 little bit embarrassed.

9 Q. Because of those issues have
10 you sought any kind of counseling with
11 anyone?

12 A. No.

13 Q. When you were in your apartment
14 building from the time that you were
15 handcuffed until you went into the van, did
16 any of your neighbors see you during that
17 time?

18 A. I have a couple of people from
19 the area looking out the window cause
20 everybody would like to see what's going on
21 in the neighborhood.

22 Q. Did you recognize any of those
23 people who were looking out the windows?

24 A. No.

25 Q. Do you know if anyone took any

1 R. MARTINEZ

2 arrested and then you had been working in
3 December doing some demolition work. Since
4 the time of the incident, have you looked
5 for work?

6 A. Yes.

7 Q. As a result of having been
8 either in detention or for court
9 appearances, has it interfered with your
10 ability to look for work?

11 A. Yes.

12 Q. How so?

13 A. The job that I was going for,
14 they didn't want felonies so since I was
15 fighting this case it was showing on my
16 record that I had a felony so it stopped me
17 from getting the job.

18 Q. Did they actually offer you a
19 job?

20 A. No.

21 Q. Did they tell you that they had
22 checked your record?

23 A. Yes.

24 Q. What's the name of that
25 employer?

1 R. MARTINEZ

2 probation?

3 A. No.

4 Q. When you took that pleading,
5 what was it for? Did you have to pay a
6 fine or something else?

7 A. No.

8 Q. Did you have any probationary
9 period as a result of that?

10 A. No.

11 Q. Do you know if that was a
12 felony or misdemeanor charge?

13 A. Misdemeanor.

14 Q. When the officer grabbed you
15 and put you into the hallway, did you
16 resist in any way?

17 A. No.

18 Q. During the time that you were
19 in detention, were you allowed to make any
20 phone calls?

21 A. Yes.

22 Q. Who did you call?

23 A. My mother.

24 Q. Before this incident, have you
25 ever had any encounter with any of the

1 R. MARTINEZ
 2 E X H I B I T S

3

4 PLAINTIFFS' EXHIBITS

5

6	EXHIBIT	EXHIBIT	PAGE
7	NUMBER	DESCRIPTION	
8	(None)		

9

10

11 I N D E X

12

13	EXAMINATION BY	PAGE
14	MR. CORNISH	3

15

16

17 INFORMATION AND/OR DOCUMENTS REQUESTED

18 INFORMATION AND/OR DOCUMENTS PAGE

19 Authorization for arrest records 28

20

21

22 QUESTIONS MARKED FOR RULINGS

23 PAGE LINE QUESTION

24 (None)

25